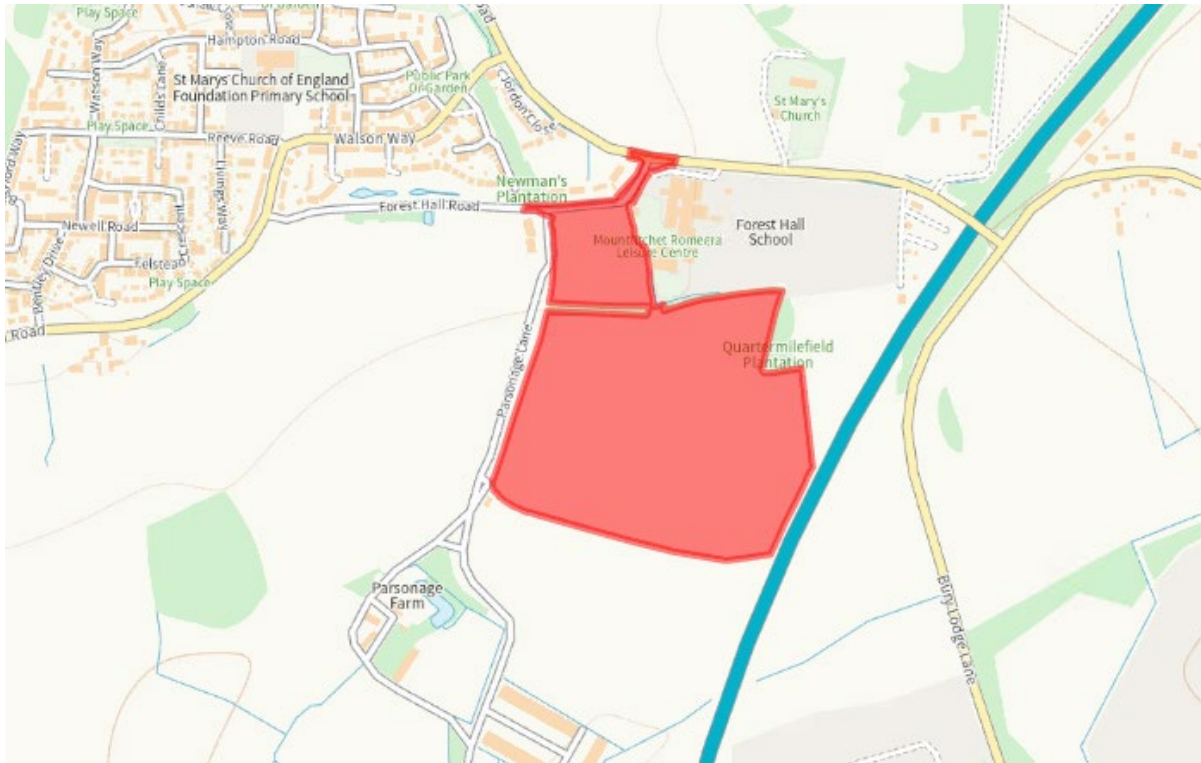


ITEM NUMBER:	4
PLANNING COMMITTEE DATE:	10 June 2026
REFERENCE NUMBER:	UTT/25/3012/OP
LOCATION:	South West Of Mountfitchet High School, Forest, Hall Road, Stansted, Essex

SITE LOCATION PLAN:



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Organisation: Uttlesford District Council Date: June 2026

PROPOSAL: Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home and village hall with access, landscaping, and associated infrastructure. All matters reserved except access

APPLICANT: City & Country Stansted Ltd

AGENT: Lucid Planning Ltd

EXPIRY DATE: 4 September 2025

EOT Expiry Date 15 June 2026

CASE OFFICER: Chris Tyler

NOTATION: Metropolitan Green Belt

REASON THIS APPLICATION IS ON THE AGENDA: Major Planning Application.

1. EXECUTIVE SUMMARY

- 1.1** This application seeks outline planning permission for a mixed-use development on land to the south of Stansted Mountfitchet, with all matters reserved except access, comprising up to 300 dwellings; up to 2,000 sq.m of Class E floorspace including offices, retail, café, early years nursery and private gym; a care home of up to 60 beds; safeguarded land for a future secondary school; a village hall/community facility; and associated access, landscaping and supporting infrastructure. All matters are reserved except access.
- 1.2** The site lies within the Metropolitan Green Belt and outside the defined settlement boundary. The principal issues are therefore the acceptability of development in Green Belt terms, whether it is defined as Grey Belt, together with landscape and visual effects, other impacts of the proposed development such as highway impacts, amenity impacts, ecology, flood risk and wider compliance with the Development Plan.

- 1.3** Having regard to the National Planning Policy Framework (2024), the site is considered capable of being regarded as Grey Belt land, as it does not strongly contribute to relevant Green Belt purposes. The proposal complies with the “Golden Rules”, including the delivery of 50% affordable housing, provision of supporting infrastructure and the inclusion of new publicly accessible green space. This attracts significant weight in favour of the proposal.
- 1.4** The development would result in harm to the openness of the Green Belt and a permanent change in the character of the site, giving rise to significant landscape effects at the site level. However, the site is not subject to landscape designation and wider landscape, and visual effects are localised and would be moderated through a landscape-led design approach, structural planting and long-term management. Technical consultees raise no objection subject to appropriate mitigation.
- 1.5** The proposal delivers a substantial package of public benefits, including a meaningful contribution to housing supply, particularly through the provision of 50% affordable housing, alongside new community facilities, high-quality landscape-led design, green infrastructure, biodiversity net gain in excess of statutory requirements, and financial contributions towards local infrastructure and sustainable transport
- 1.6** While the proposal conflicts with elements of the Development Plan, these harms are limited in their wider extent and are outweighed by the benefits of the scheme, particularly the policy support for Grey Belt development. Planning permission is therefore recommended, subject to the completion of a Section 106 Agreement and the imposition of conditions

2. RECOMMENDATION

2.1

That the Strategic Director of Planning be authorised to **GRANT** permission for the development subject to those items set out in section 17 of this report –

A) Completion of a s106 Obligation Agreement in accordance with the Heads of Terms as set out

B) Conditions

Each subject to any minor amendments and alterations as considered appropriate by the Strategic Director of Planning.

If the freehold owner shall fail to enter into such an agreement, the Director of Planning shall be authorised to REFUSE permission following the expiration of a 6-month period from the date of Planning Committee.

3. SITE LOCATION AND DESCRIPTION:

- 3.1** The application site is located on the southern edge of Stansted Mountfitchet, immediately south of Forest Hall Road, within the administrative area of Uttlesford District Council. The site lies outside the defined settlement boundary of Stansted Mountfitchet as set out in the adopted Uttlesford Local Plan and is washed over by the Metropolitan Green Belt.
- 3.2** Stansted Mountfitchet is identified as a Key Settlement in the Uttlesford Local Plan (2021–2041) and contains a wide range of services and facilities, including primary and secondary schools, retail provision, healthcare facilities, a railway station with services to London and Cambridge, and public transport connections to Bishops Stortford and Stansted Airport.
- 3.3** The site is located approximately:
- 1.1km south of Stansted Mountfitchet railway station and village centre,
 - Adjacent to Forest Hall Secondary School and the Mountfitchet Romeera Leisure Centre,
 - Approximately 200 metres from the nearest bus stops on Forest Hall Road.
- 3.4** The application site comprises two parcels of agricultural land, extending to approximately 15.4 hectares in total, currently in arable use. The land is generally flat to gently undulating and is enclosed by a combination of hedgerows, tree belts and post-and-wire fencing.
- Boundaries and Context**
- 3.4.1** North:
The site is bounded by Forest Hall Road, beyond which lies the built-up edge of Stansted Mountfitchet, including residential development, Forest Hall Secondary School and associated leisure facilities.
- 3.4.2** East:
Land to the east includes tree belts and planting associated with the school and leisure centre, with the M11 motorway located further east, separated from the site by vegetation and intervening land uses.
- 3.4.3** South:
The site adjoins open agricultural land, forming part of the wider rural landscape within the Green Belt.
- 3.4.4** West:
The western boundary is defined by Parsonage Lane, a rural lane with an associated public bridleway, beyond which are small-scale

residential and employment uses further south, including business premises associated with the M11 Business Link area.

- 3.4.5** There are no public rights of way within the main developable areas of the site, although a bridleway runs alongside Parsonage Lane to the west and connects into the wider rights-of-way network. Vehicular access is currently taken from Forest Hall Road for agricultural purposes, and the application proposes a new principal access at this location.



Plan 1: Application Site Context

- 3.5**
- The site is not subject to any landscape or ecological designations.
 - It lies within Flood Zone 1, indicating a low risk of fluvial flooding.
 - There are no Tree Preservation Orders affecting the site, and no Ancient Woodland within or adjacent to it.
 - The nearest designated heritage assets include Parsonage Farmhouse and associated listed buildings, located approximately 120 metres to the south-west, and the Church of St Mary the Virgin (Grade II*), located approximately 400

metres to the north. The site itself does not lie within a Conservation Area.

- 3.6** Overall, the site forms part of the transitional edge between the built-up area of Stansted Mountfitchet and the open countryside, contributing to the rural setting immediately south of Forest Hall Road.

4. PROPOSAL

- 4.1** The application seeks outline planning permission for a mixed-use development on land south of Stansted Mountfitchet, with all matters reserved for future determination except for access. The proposal forms a major development within the Metropolitan Green Belt and is supported by an Environmental Statement.
- 4.2** The development is described as an outline application for up to 300 residential dwellings, together with up to 2,000 square metres of Class E floorspace, a care home of up to 60 bedrooms and a village hall. The proposal also includes associated access arrangements, green infrastructure, landscaping, drainage and other supporting infrastructure. The precise siting, layout, appearance, scale and landscaping of the development would be addressed through subsequent reserved matters applications should outline permission be granted.
- 4.3** The residential element of the proposal comprises up to 300 dwellings of mixed type and size. The applicant indicates that 50% of the dwellings would be provided as affordable housing, to be delivered on site. The detailed tenure mix, dwelling sizes and phasing of the affordable housing would be secured through a Section 106 legal agreement, subject to further consideration by the Council and relevant consultees.
- 4.4** In addition to residential development, the proposal includes up to 2,000 square metres of Class E commercial floorspace, intended to accommodate a range of local facilities and services, including small-scale retail, office use, a café, an early-years nursery and a gym. A care home of up to 60 bedrooms is also proposed within the site. The detailed design, layout and relationship of these non-residential uses to surrounding development would be determined at reserved matters stage.
- 4.5** Vehicular access to the site is proposed from Forest Hall Road, and this is the only detailed matter submitted for approval at this outline stage. Pedestrian and cycle connections within and beyond the site are indicated in principle, with details to be assessed as part of future reserved matters submissions.

4.6 The proposal incorporates areas of public open space, green infrastructure and landscape buffers, together with the provision of sustainable drainage systems, including attenuation features. Existing landscape features such as hedgerows and tree belts are proposed to be retained and enhanced where possible, with additional planting proposed to support landscape integration and biodiversity enhancements. The detailed design and long-term management of these elements would also be considered at reserved matters stage.

4.7 The application constitutes EIA development and is accompanied by an Environmental Statement, which assesses the likely environmental effects of the proposal, both individually and cumulatively with related development proposals in the surrounding area.

5. ENVIRONMENTAL IMPACT ASSESSMENT

5.1 The application is accompanied by an Environmental Statement (ES), prepared in accordance with the Town and Country Planning (Environmental Impact Assessment) Regulations 2017. The proposed development falls within Schedule 2, Part 10(b) of the Regulations, as an urban development project exceeding 150 dwellings, and has therefore been subject to Environmental Impact Assessment.

5.2 The ES assesses the likely significant environmental effects of the proposed development, applying a 'worst-case' approach based on the maximum parameters sought at outline stage. The assessment covers both the construction and operational phases of the development and has been informed by topic-specific surveys, technical assessments and consultation with the Local Planning Authority and statutory consultees.

5.3 The following topic areas were scoped into the EIA:

- Landscape and visual effects
- Transport and movement
- Socio-economic effects
- Ecology and biodiversity
- Noise
- Air quality
- Climate change
- Water resources, flood risk and drainage
- Public health

5.4 Where necessary, mitigation has either been embedded within the design or is capable of being secured through planning conditions and legal obligations.

6. RELEVANT SITE HISTORY

No relevant planning history for this site.

7. PREAPPLICATION ADVICE AND/OR COMMUNITY CONSULTATION

7.1 Community Consultation

7.2 The applicant undertook an extensive programme of pre-application engagement in accordance with the National Planning Policy Framework and Uttlesford District Council's Statement of Community Involvement. Consultation was carried out in two stages between November–December 2024 and September–October 2025 and was coordinated alongside discussions with Council officers and elected Members.

7.3 The consultation was widely publicised and generated a substantial level of response, with over 1,200 representations received across both stages. Feedback raised recurring concerns in relation to traffic and infrastructure capacity, potential coalescence between settlements, impacts on village character and environmental considerations. Some respondents also acknowledged the need for housing and improvements made to the proposals between consultation stages.

7.4 The applicant has stated that consultation feedback informed revisions to the scheme, including a reduction in the scale of development and refinements to the layout, access and environmental measures. The Statement of Community Involvement demonstrates that meaningful engagement has been undertaken, the feedback has been reported transparently, and the applicant has committed to ongoing engagement as the application progresses.

7.5 Pre-Application Engagement and Design Review

7.6 The proposals have been informed by an extensive programme of pre-application engagement, including engagement undertaken through a Planning Performance Agreement (PPA) with Uttlesford District Council. This provided a structured framework for early and ongoing dialogue with Officers, enabling strategic matters relating to Green Belt policy, access, design, landscape, heritage and infrastructure to be explored and to shape the evolution of the scheme prior to submission.

7.7 Given that the Council was designated for major applications under Section 62A of the Town and Country Planning Act 1990 at this time, formal pre-application advice was also sought from the Planning Inspectorate. The appointed Inspector advised that land south of Forest Hall Road (Sites F and G of which this application considers) could, in principle, have the potential to be regarded as Grey Belt and therefore not inappropriate development in the Green Belt, subject to

the proposals meeting the criteria set out in paragraph 155 of the National Planning Policy Framework. This included demonstrating that the land could be treated as Grey Belt, delivering 50% affordable housing, securing necessary infrastructure contributions, providing high-quality and accessible green space, and ensuring the site could function as a sustainable location with appropriate pedestrian and cycle connectivity. The Inspector also identified that development would result in some harm to countryside character and heritage settings, which would need to be carefully mitigated through design and landscaping and weighed in the overall planning balance. The advice was provided on a without-prejudice basis and does not predetermine the outcome of the application.

- 7.8** The application proposals have been reviewed at the Uttlesford Quality Review Panel (UQRP) during the pre-application stage. The Panel considered the emerging masterplan, design approach and landscape-led strategy and provided independent design advice to the applicant.
- 7.9** The Panel broadly supports the landscape-led approach for the Stansted sites (F and G), recognising the sensitivity to local landscape character and considering the proposed landscape buffers and visual containment to be appropriate. The Panel notes that these parcels are less constrained in visual terms and capable of being effectively integrated within their rural context. However, concerns are raised regarding the need to avoid an inward-looking or isolated form of development, with stronger physical and social connections to the existing community, including Forest Hall and surrounding areas, encouraged.
- 7.10** The Panel also highlights that elements of the masterplanning remain unresolved, particularly in relation to land use strategy, block structure, and the integration of community and non-residential uses. Further clarity is sought on how the sites will function in practice, including the role of open space, movement routes, and the relationship with adjacent infrastructure constraints. Overall, whilst the sites are considered to have potential, the Panel advises that further design development is required to achieve a well-integrated and cohesive extension to Stansted Mountfitchet.

8. SUMMARY OF STATUTORY CONSULTEE RESPONSES

8.1 Highway Authority -No Objections

8.1.1 The Highway Authority raises no objection to the proposed development, concluding that, subject to a comprehensive package of conditions and Section 106 obligations, the scheme would provide safe and suitable access for all users and would not result in severe impacts on the highway network. The proposed access arrangements, junction signalisation, and robust transport modelling demonstrate that capacity and safety concerns have been appropriately addressed, while the inclusion of active travel routes, pedestrian improvements and significant financial contributions towards bus services and wider highway infrastructure ensure that the development promotes sustainable transport. Accordingly, the proposal is considered to comply with the requirements of the NPPF (2024) and relevant highway policies

8.2 Local Flood Authority – No Objection.

8.2.1 Having reviewed the Flood Risk Assessment and the associated documents which accompanied the planning application, we do not object to the granting of planning permission (Subject to conditions).

8.3 London Stansted Airport- No Objection

8.3.1 The Safeguarding Authority for Stansted Airport has assessed this proposal and its potential to conflict with aerodrome Safeguarding criteria. No objection subject to conditions.

8.4 National Highways- No Objection.

8.4.1 National Highways considers that the proposal would not have a severe impact on the Strategic Road Network, including M11 Junction 8 and the A120, and raises no objection to the access arrangements, which are via the local road network. The submitted transport information adequately addresses cumulative impacts, and no Strategic Road Network mitigation is required.

8.5 Active Travel England- No Objection.

8.5.1 Active Travel England (ATE) has reviewed the proposal and issued standing advice, raising no objection to the development. ATE advises that the Local Planning Authority should have regard to its published guidance on delivering safe, attractive and inclusive walking and cycling routes as part of the assessment of the application.

8.6 Natural England- No Objection

8.6.1 Natural England advises that, without mitigation, the proposal could have adverse recreational impacts on Hatfield Forest SSSI and National Nature Reserve, which lies within the identified Zone of

Influence. To make the development acceptable, the following must be secured by condition or planning obligation:

- A financial contribution of £1,333.60 per dwelling towards the Strategic Access Management and Monitoring (SAMM) strategy;
- Provision of on-site Accessible Natural Greenspace (ANG) of appropriate quality and size; and
- A signposted circular dog-walking route of approximately 2.3–2.5km.

Natural England advises that planning permission should not be granted unless these mitigation measures are secured.

8.7 Sports England

8.7.1 Sport England advises that the application does not fall within its statutory remit and therefore makes no detailed objection. It provides general advice that, where relevant, the LPA should consider the impact of new housing on demand for sports facilities, the protection of any existing facilities, and the provision of new or improved facilities in accordance with any adopted Playing Pitch or Built Facilities Strategy. Active Design principles are also encouraged to promote healthy communities.

9. Parish Council

9.1 Birchanger Parish Council

9.1.1 Birchanger Parish Council objects to the Stansted Mountfitchet proposal for the following reasons:

9.1.1.1 The site lies within the Metropolitan Green Belt and performs strongly against Green Belt purposes, particularly preventing coalescence between Stansted Mountfitchet, Birchanger and Bishop's Stortford. The proposal is considered inappropriate development, and the applicant has failed to demonstrate Very Special Circumstances or that the site should be treated as "Grey Belt".

9.1.1.2 The development site is not allocated in either the adopted Local Plan or the emerging Local Plan, which is at an advanced stage. Granting permission would be premature and would prejudice the plan-making process.

9.1.1.3 The development would result in significant landscape and visual harm, including erosion of the rural gap and detriment to the setting and character of Stansted Mountfitchet, contrary to both adopted and emerging policy.

9.1.1.4

- 9.1.1.5** The proposal would lead to the loss of Best and Most Versatile agricultural land (predominantly Grade 2 and Grade 3a), which the Parish Council considers unjustified and contrary to national policy.
- 9.1.1.6** The Transport Assessment is considered inadequate, under-estimating baseline traffic and future growth, including impacts from Stansted Airport expansion and development in Bishop's Stortford. The Council considers that residual impacts on the highway network would be severe.
- 9.1.1.7** The proposed single vehicular access from Forest Hall Road is considered unsafe and sub-standard, with insufficient width, only one footway, poor visibility, and inadequate provision for pedestrians, cyclists and emergency vehicles, particularly if a secondary school were to be delivered on the safeguarded land.
- 9.1.1.8** The proposal fails to adequately assess or mitigate impacts on healthcare and education infrastructure, with evidence cited that GP services and secondary schools are already under pressure and cannot absorb additional demand.
- 9.1.1.9** The (Parish) Council considers that the scheme fails to meet the NPPF "Golden Rules", including binding affordable housing provision, infrastructure delivery, and green space improvements.
- 9.1.1.9** Birchanger Parish Council requests that UTT/25/3012/OP be refused, either alone or alongside the related Birchanger application, due to Green Belt harm, conflict with the development plan, unacceptable landscape and transport impacts, and insufficient infrastructure mitigation.

9.2 Stansted Mountfitchet Parish Council

- 9.2.1** The Parish Council objects to the proposal on the grounds that it represents inappropriate development in the Metropolitan Green Belt, is not allocated in either the adopted or emerging Local Plan, and would be premature, prejudicing the imminent plan-making process. The Council considers that the site does not meet the definition of "Grey Belt" and that the NPPF Golden Rules have not been satisfied
- 9.2.2** The Parish Council raises concern regarding significant landscape and visual harm, including erosion of the rural buffer to the south of Stansted Mountfitchet, harm to the setting of the settlement, and adverse effects on long-distance views, alongside the loss of Best and Most Versatile agricultural land (predominantly Grades 2 and 3a).
- 9.2.3** The Transport Assessment is considered flawed, under-estimating baseline and cumulative traffic impacts, including those arising from Stansted Airport expansion and development in Bishop's Stortford. The Parish Council objects to the proposed single access from Forest

Hall Road, citing highway safety risks, inadequate pedestrian provision, emergency access concerns, and insufficient consideration of secondary school impacts.

9.2.4 Further objections are raised regarding the lack of capacity in health and education infrastructure, with evidence cited that GP services, hospitals, and secondary schools are already under significant pressure and cannot accommodate further growth without clear, secured mitigation.

9.2.5 Overall, the Parish Council concludes that the proposal conflicts with national and local policy, would cause unacceptable environmental, highways, and infrastructure harm, and should therefore be refused.

9.3 Bishops Stortford Town Council

9.3.1 Bishop's Stortford Town Council notes that the proposed development at Southwest of Mountfitchet High School, Stansted (UTT/25/3012/OP) is located approximately 3 miles from Bishop's Stortford and would have major ramifications for the town.

9.3.2 The Town Council raises particular concern that the Transport Assessment fails to adequately consider the impacts on Bishop's Stortford, including:

9.3.3 Increased traffic at the A120 roundabout in Hertfordshire at the junction with Stansted Road;

- Additional traffic impacts on Michaels Road, Rye Street and Newlands Avenue; and
- Wider cross-boundary impacts, with the assessment focusing only on improvements within Essex and not Hertfordshire.

9.3.4 The Town Council also states that the Transport Assessment overstates cycling connectivity, noting that:

- NCN Route 16 does not provide a route to or from Bishop's Stortford, nor does it connect to Harlow, contrary to the application's claims.

9.3.5 In relation to rail travel, the Council notes that:

- The assessment focuses on Stansted Mountfitchet Station, which has limited services and parking;
- Bishop's Stortford Station offers significantly more frequent services and substantially more parking, and is therefore likely to attract trips from the new development, increasing traffic pressures within Bishop's Stortford.

- 9.3.6** The Town Council requests that Uttlesford District Council and East Herts District Council work together under the Duty to Cooperate, and that the impacts of the development on Bishop's Stortford are appropriately mitigated through secured S106 or S278 agreements.

10 CONSULTEE RESPONSES

10.1 UDC Housing Enabling Officer – No Objection.

- 10.1.1** The Council's Housing Enabling & Development Officer raises no objection in principle to the proposal, subject to policy compliance. The application indicates provision of up to 50% affordable housing (up to 150 dwellings). An affordable housing tenure split of 70% Affordable/Social Rent and 30% affordable home ownership with the remaining 10% comprising low-cost home ownership. All market and affordable dwellings must meet the Nationally Described Space Standards, noting that some of the minimum unit sizes set out in the Design and Access Statement fall below the required standards. The detailed affordable housing mix can be agreed at detailed/following-outline stage and should include 5% bungalows in accordance with the Council's Housing Strategy. The proximity of affordable housing to the M11 motorway is also flagged as a potential consideration for Registered Providers when assessing suitability.

10.2 UDC Environmental Health – No Objection.

- 10.2.1** Environmental Health raises no objection, subject to conditions. The authority is satisfied that the submitted Environmental Statement demonstrates the site is suitable for the proposed development, but advises that a number of matters require securing by condition. These include further assessment and mitigation of noise impacts, noting that baseline noise monitoring is insufficient across parts of the site, particularly in relation to the M11, Parsonage Lane Business Park, Mountfitchet High School and Mountfitchet Romeera Leisure Centre, and that additional noise assessment, mitigation and ventilation strategies will be required. Conditions are also recommended to address external lighting impacts, both from surrounding uses and from the development itself, to protect residential amenity and biodiversity. In respect of contaminated land, intrusive investigation, remediation (if required) and validation are sought due to the presence of former infilled sand pits and potential made ground. A Construction Environmental Management Plan is recommended to control noise, dust and lighting during construction, and provision is required for electric vehicle charging infrastructure in the interests of air quality and net-zero objective.

10.3 Cadent Gas- No Objection

10.3.1 We have received a notification regarding a planning application that has been submitted which is near our medium and low-pressure assets. We have no objection to this proposal from a planning perspective.

10.4 UK Power Networks- No Objection

10.4.1 No objection, subject informative

10.5 National Trust – No Objection

10.5.1 The National Trust raises no objection in principle, provided appropriate mitigation is secured. The site lies within the established Zone of Influence of Hatfield Forest SSSI and National Nature Reserve, which is experiencing increasing and unsustainable recreational pressure. The Trust advises that new residential development within this zone will contribute to cumulative visitor impacts on the Forest, and therefore requires mitigation in line with evidence prepared by Footprint Ecology and supported by Natural England. This includes the provision of on-site mitigation, such as high-quality informal open space and dog-walking routes to discourage visits to Hatfield Forest, alongside an off-site financial contribution of £398,808 (£1,329.36 per dwelling) towards strategic access management, visitor monitoring and habitat protection measures at Hatfield Forest. The National Trust advises that, in the absence of secured mitigation, it would object to the application.

10.6 Essex Fire and Rescue

10.6.1 Essex County Fire & Rescue Service raises no objection in principle, subject to detailed design compliance at Reserved Matters stage. The Service advises that access arrangements for fire appliances must accord with Approved Document B and the Essex Act 1987, including minimum carriageway widths of 3.7 metres, provision of turning facilities for dead-end routes exceeding 20 metres, and ensuring that fire appliances can be positioned within 45 metres of all points within dwellinghouses. The Service notes that some plots, as currently illustrated, may not meet these requirements and advises that fire access details should be carefully addressed as part of the detailed layout.

10.7 Place Services (Archaeology) – No objection.

10.7.1 The County Historic Environment Advisor raises no objection, subject to conditions. Review of the submitted geophysical survey indicates a low potential for archaeological remains; however, further investigation is required to fully understand any archaeological assets that may be affected by the proposed development. In accordance with paragraph 218 of the NPPF (2024), a phased programme of archaeological work is recommended, including trial trenching prior to

the submission of reserved matters, followed by targeted excavation or mitigation where necessary. All works are to be undertaken in accordance with a Written Scheme of Investigation (WSI) approved by the Local Planning Authority, with provision for post-excavation assessment, reporting and archive deposition

10.8 Essex Police- No objection

10.8.1 Essex Police raise no objection to the proposal but advise that the development should incorporate Secured by Design principles, include a Crime Impact Statement, and be designed to promote community safety and minimise future enforcement demands, particularly through well-planned parking and self-enforcing road layouts; they also encourage engagement on road safety in line with the Safe System / Vision Zero approach and recommend consideration of electric-vehicle charging infrastructure, including potential provision for emergency services, to support sustainable and visible policing

10.9 Essex Police Designing Out Crime- No Objection

10.9.1 The Essex Police Designing Out Crime Office raises no objection to the outline proposal but strongly emphasises that the development should be designed from the outset to incorporate Crime Prevention Through Environmental Design (CPTED) principles, with the aim of achieving Secured by Design (SBD) accreditation in line with current residential and non-residential guidance; they encourage early engagement with the design team to address matters such as layout, lighting, perimeter treatments, access control, management and maintenance, and the design of walking, cycling routes and public rights of way to ensure users feel safe, while also highlighting the importance of maintaining effective emergency service access, both during construction and once the development is operational, and promoting a Safe System approach to the design of access and local roads.

10.10 Affinity Water- No Objection

10.10.1 Affinity Water raises no objection to the proposal. The site is not located within a groundwater Source Protection Zone and is not close to Affinity Water abstractions; however, construction and operation should be undertaken in accordance with relevant British Standards and best practice to minimise pollution risk, with appropriate investigation, monitoring and remediation required should contamination be encountered. Affinity Water advises that, given the site's location within a water-stressed area, the development should incorporate water-efficient fixtures and fittings, with a design standard of 110 litres per person per day or less encouraged, alongside measures such as rainwater harvesting and greywater recycling. The applicant is advised that water mains may be present within or

adjacent to the site and that early engagement with Affinity Water's Developer Services team will be required to address water supply, asset protection or any diversion works.

10.11 Thames Water- No Objection

10.11.1 Thames Water advises that the existing foul water network does not have sufficient capacity to accommodate the proposed development and therefore requests a pre-occupation condition requiring confirmation that either the necessary network upgrades have been completed or that an agreed phasing plan for development and infrastructure is in place. This is necessary to avoid the risk of sewer flooding and pollution incidents. Thames Water also notes that public sewers run within or close to the site, and that build-over agreements will be required for works near these assets. The applicant is expected to demonstrate measures to minimise groundwater discharges to the foul sewer, with any such discharges requiring a permit. Thames Water raises no objection in principle to surface water drainage, as surface water is not proposed to discharge to the public sewer network, subject to approval by the Lead Local Flood Authority.

10.12 ECC Ecology- No Objections

10.12.1 Place Services (Ecology) raises no ecological objection, subject to conditions. The authority is satisfied that sufficient ecological information has been submitted to support determination of this outline application and that, with appropriate mitigation secured, the development would be acceptable in ecological terms. Conditions are recommended to secure all mitigation measures identified in the Ecology Environmental Statement, including a Construction Environmental Management Plan for Biodiversity, appointment of an Ecological Clerk of Works, submission of a Natural England Great Crested Newt District Level Licence prior to commencement, a Biodiversity Enhancement Strategy, a wildlife-sensitive lighting strategy, and a Landscape and Ecological Management Plan to ensure long-term habitat management. Place Services supports the submitted Biodiversity Net Gain Strategy and confirms that a Biodiversity Gain Plan will be required prior to commencement in accordance with statutory requirements, with potential long-term management and monitoring of significant on-site enhancements secured for up to 30 years.

10.13 UDC Urban Design Officer

10.13.1 The Principal Urban Design Officer offers strongly supportive comments, describing the proposal as an exemplary, place-specific, landscape-led scheme that has evolved positively through pre-application engagement and review. The design is considered to integrate sensitively with its rural context, with car-free garden lanes, generous public realm, well-considered housing typologies, and

parking arrangements that prioritise pedestrians and active travel. A site-specific Design Code is welcomed as a mechanism to secure design quality at outline stage, though it is advised that key landscape-led principles are expressed as mandatory requirements to ensure the design vision is fully carried through at Reserved Matters. No further comments are raised on the most recent submissions.

10.14 UDC Landscape Officer- No Objection

10.14.1 The Council's Principal Landscape Officer provides positive, advisory feedback on the landscape-led approach to the proposal, noting that the scheme is well considered and thoughtfully designed, with a high level of detail. The development incorporates a strong landscape structure, including multifunctional community spaces, pedestrian connections, central greens and lanes, retained field boundaries, paddocks, an eastern acoustic bund adjoining the M11, and garden courts. Tree losses are limited to category U specimens only and are therefore acceptable, with no trees of high amenity value proposed for removal. Adequate separation distances and protection measures are proposed for retained trees, including no-dig construction within Root Protection Areas, all of which fall well within the 20% threshold set out in BS5837. The site also benefits from existing vegetation that provides significant visual screening, and the proposed reinstatement of historic hedgerows and woodland planting is considered to effectively mitigate wider visual effects. Overall, while the landscape and visual impacts of a development of this scale are acknowledged, they are considered to have been appropriately assessed and mitigated through the proposed landscape strategy.

10.15 UDC Heritage Officer- No Objection

10.15.1 The Council's Principal Conservation Officer raises no objection, subject to design principles being carried through at Reserved Matters stage. The application site contains no designated or non-designated heritage assets but lies within the setting of several nearby listed buildings, including the Grade II* Church of St Mary the Virgin and Grade II listed buildings at Parsonage Farm and Forest Hall. A Heritage Impact Assessment has been submitted and is considered to provide a balanced and proportionate assessment of the potential effects of the proposal, demonstrating a thoughtful design response informed by pre-application heritage advice. The development is acknowledged to result in a low level of less than substantial harm to the significance of these heritage assets, primarily through changes to their rural setting, consistent with paragraph 215 of the NPPF (2024). The landscape-led approach, contemporary interpretation of the Essex vernacular, avoidance of overtly suburban layouts, and restrained material palette are supported. The Conservation Officer advises that the Heritage Impact Assessment should be kept under review and updated at Reserved Matters, with clear evidence of ongoing collaboration between architects and

heritage consultants, and that key design principles should be secured by condition to ensure heritage impacts remain minimised as details evolve.

10.16 NHS - No Objection

10.16.1 The NHS Hertfordshire and West Essex Integrated Care Board raises no objection to the proposed development, subject to the securing of appropriate financial contributions. The development is expected to generate approximately 733 additional patients from the residential element and further patients from the proposed care home, which would place additional pressure on existing primary care services. The ICB advises that Peacock Surgery would be unable to accommodate this growth without mitigation and therefore requires a total contribution of £510,534 (index linked) towards the reconfiguration and expansion of local healthcare facilities. Subject to securing this contribution through a Section 106 agreement, the development is considered acceptable in healthcare terms.

11 REPRESENTATIONS

11.1 Site notice/s were displayed on site, and 93 notifications letters were sent to nearby properties. The application was also advertised in the local press.

11.2 A large number of objections have been received from local residents and a small number of local groups. The representations raise similar concerns, which can be grouped into a small number of main issues.

11.2.1 Main Issues Raised

11.2.2 Principle of development / countryside impact
Many objectors consider the site to be open countryside or Green Belt and are concerned about loss of openness and the spread of development towards Birchanger.

11.2.3 Scale of development
The proposed level of development (up to 300 dwellings and associated uses) is viewed as excessive and out of keeping with the character of the area.

11.2.4 Highways and traffic
Significant concern is raised about increased traffic, highway safety and congestion, particularly on Forest Hall Road and surrounding routes.

11.2.5 Pressure on local infrastructure

Concerns are raised regarding the capacity of local schools, healthcare, drainage and other services to accommodate additional growth.

11.2.6

Landscape and visual impact

Objectors are concerned about loss of views, harm to the rural setting and the visual impact of development when seen from nearby roads and public rights of way.

11.2.7

Ecology and environment

Some representations raise concerns about impacts on wildlife and the natural environment. 1

11.2.8

Other Matters Raised

Construction disturbance, noise and general disruption. Concerns about property values and loss of private views (not material planning considerations).

11.3 A large number of representations have been received, the majority objecting to the proposal. The main concerns relate to the principle of development in the countryside/Green Belt, the scale of the proposed development, and the potential for coalescence between Stansted Mountfitchet and Birchanger. Significant concern is also raised regarding traffic generation and highway safety, pressure on local infrastructure, and landscape and visual impacts. Additional matters raised include effects on ecology, construction disturbance and general residential amenity. Issues relating to property values and loss of private views have also been cited but are not material planning considerations. All representations have been taken into account in the assessment of the application.

12 MATERIAL CONSIDERATIONS

12.1 In accordance with Section 38 (6) of the Planning and Compulsory Purchase Act 2004, this decision has been taken having regard to the policies and proposals in the National Planning Policy Framework, The Development Plan and all other material considerations identified in the “Considerations and Assessments” section of the report. The determination must be made in accordance with the plan unless material considerations indicate otherwise.

12.2 Section 70(2) of the Town and Country Planning Act requires the local planning authority in dealing with a planning application, to have regard to

- a) The provisions of the development plan, so far as material to the application, (aza) a post-examination draft neighbourhood development plan, so far as material to the application,

b) any local finance considerations, so far as material to the application, and any other material considerations.

12.3 Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 requires the local planning authority, or, as the case may be, the Secretary of State, in considering whether to grant planning permission (or permission in principle) for development which affects a listed building or its setting, to have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses.

12.4 The Development Plan

Essex Minerals Local Plan (adopted July 2014)
Essex and Southend-on-Sea Waste Local Plan (adopted July 2017)
Felsted Neighbourhood Plan (made 21 February 2020)
Great Dunmow Neighbourhood Plan (made December 2016)
Newport and Quendon and Rickling Neighbourhood Plan (made 28 June 2021)
Thaxted Neighbourhood Plan (made 21 February 2019)
Stebbing Neighbourhood Plan (made 19 July 2022)
Saffron Walden Neighbourhood Plan (made 11 October 2022)
Ashdon Neighbourhood Plan (made 6 December 2022)
Great and Little Chesterford Neighbourhood Plan (made 2 February 2023)

13 POLICY

13.1 National Policies

National Planning Policy Framework (2024)

13.2 Uttlesford District Plan 2021- 2041

Core Policy 1 – Addressing Climate Change
Core Policy 2 – Meeting Our Housing Needs
Core Policy 3 – Settlement Hierarchy
Core Policy 3 – Settlement Hierarchy
Core Policy 22 – Net Zero Operational Carbon Development
Core Policy 23 – Overheating
Core Policy 24 – Embodied Carbon
Core Policy 25 – Renewable Energy Infrastructure
Core Policy 26 – Sustainable Transport & Connectivity
Core Policy 26 – Sustainable Transport & Connectivity
Core Policy 27 – Assessing Transport Impact
Core Policy 27 – Transport Impact Assessment
Core Policy 28 – Active Travel (Walking & Cycling)
Core Policy 29 – Electric & Low Emission Vehicles
Core Policy 30 – Public Rights of Way
Core Policy 31 – Parking Standards

Core Policy 33 – Managing Waste
 Core Policy 34 – Water Supply & Protection of Resources
 Core Policy 34 – Water Supply and Protection of Water Resources
 Core Policy 36 – Flood Risk
 Core Policy 36 – Flood Risk
 Core Policy 37 – Sustainable Drainage Systems (SuDS)
 Core Policy 38 – Sites Designated for Biodiversity or Geology
 Core Policy 39 – Green & Blue Infrastructure
 Core Policy 39 – Green & Blue Infrastructure
 Core Policy 40 – Biodiversity and Nature Recovery
 Core Policy 41 – Landscape Character
 Core Policy 41 – Landscape Character
 Core Policy 41 – Landscape Character
 Core Policy 42 – Pollution & Contamination
 Core Policy 43 – Air Quality
 Core Policy 44 – Noise
 Core Policy 52 – Good Design Outcomes & Process
 Core Policy 52 – Good Design Outcomes and Process
 Core Policy 53 – Standards for New Residential Development
 Core Policy 54 - Supported and Specialist Housing
 Core Policy 55 – Residential Space Standards
 Core Policy 56 – Affordable Dwellings
 Core Policy 59 – The Metropolitan Green Belt
 Core Policy 62 – Listed Buildings
 Core Policy 64 – Archaeological Assets
 Development Policy 9 – Public Art

13.3 Neighbourhood Plan

13.3.1 No neighbourhood plan made.

13.4 Supplementary Planning Document or Guidance

13.4.1 Essex Design Guide
 Uttlesford Design Code

14. CONSIDERATIONS AND ASSESSMENT

The issues to consider in the determination of this application are:

- A) Principle of Development
- B) Suitability and Location
- C) Design, Landscaping and Heritage
- D) Housing Mix and Tenure
- E) Access and Parking
- F) Neighbouring Amenity
- G) Nature Conservation & Trees
- H) Climate Change
- I Environmental Health
- J) Flooding

- K) Planning Obligations
- L) Environmental Impact Assessment
- M) Planning Balance

14.1. A) Principle of Development

14.1.2 Green Belt Designation

14.1.3 The site lies within the designated Metropolitan Green Belt. The NPPF (2024) confirms that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. New buildings in the Green Belt are inappropriate unless they meet one of the exceptions in Paragraph 153 or satisfy the criteria in Paragraph 155 (Grey Belt). Otherwise, development is inappropriate and may only be granted where Very Special Circumstances (VSC) exist.

14.1.4 Adopted Uttlesford Local Plan 2021–2041

14.1.4.1 The adopted Local Plan sets out a firm spatial strategy directing growth to sustainable, allocated settlements while maintaining strict protection of the Metropolitan Green Belt. The following policies are directly relevant:

14.1.4.2 Core Policy 59 – The Metropolitan Green Belt
CP59 confirms that the Green Belt will be retained, protected and kept permanently open, and that no Green Belt land is allocated for development. Proposals must be assessed against national policy, requiring protection of openness, avoidance of sprawl, and resistance to encroachment.

14.1.4.3 Core Policy 3 – Settlement Hierarchy
CP3 directs development to Key Settlements, Local Rural Centres and other defined settlements. Development outside settlement limits is not supported unless allocated or brought forward through an appropriate policy mechanism. The site lies outside any defined boundary and is therefore contrary to CP3.

14.1.4.4 Core Policy 2 – Meeting Our Housing Needs
CP2 identifies the district's housing requirement and delivers it through strategic allocations and sustainable locations supported by necessary infrastructure. The application site is not allocated and does not form part of the planned distribution of growth. The scheme therefore conflicts with CP2.

14.1.4.5 Core Policy 41 – Landscape Character
The site comprises an undeveloped area of open land at the edge of the village, forming part of the transition between the built form and the surrounding countryside. It contributes to the character of the settlement edge and the perception of openness in this location.

- 14.1.4.6** The proposed development would introduce built form into this currently open and undeveloped area, extending the settlement into the countryside and altering the existing rural character. In this context, the resulting urbanising influence and visual change would be prominent and is considered to amount to unacceptable visual intrusion, particularly given the role of the site in defining the settlement edge.

Accordingly, the proposal is not considered to accord with Core Policy 41

14.1.5 Grey Belt Assessment

- 14.1.6** The application site is located within the Metropolitan Green Belt. Paragraph 155 of the National Planning Policy Framework (NPPF, December 2024) confirms that the construction of new buildings within the Green Belt constitutes inappropriate development unless one of the stated exceptions applies. However, the Framework also provides that the development of homes should not be regarded as inappropriate development where the proposal utilises Grey Belt land and meets the criteria set out in paragraph 155.

- 14.1.7** Grey Belt land is defined in the NPPF glossary as land within the Green Belt that does not strongly contribute to purposes (a), (b) or (d) set out in paragraph 143, and which is not subject to the policies listed in Footnote 7. In determining whether the site meets this definition, regard has been had to the submitted evidence, the Council's Green Belt Study, national planning policy and guidance, and the site-specific context.

- 14.1.8** In assessing the contribution of the site to Green Belt purposes:

- 14.1.9 Purpose (a)** – to check the unrestricted sprawl of large built-up areas:

- 14.1.9.1** The site is located at the edge of Stansted Mountfitchet and is bounded to the north by Forest Hall Road, with the M11 corridor providing a strong infrastructure feature in the wider context. These features contribute to a defined settlement edge.

- 14.1.9.2** To the south, the site adjoins land with planning permission for a solar farm (UTT/25/1742/FUL). Whilst this does not represent a permanent built-up boundary, it introduces development and associated infrastructure which reduces the perception of the site as part of the open countryside and provides a degree of containment in visual and functional terms.

- 14.1.9.3** Furthermore, development of the site would create a more clearly defined and defensible southern boundary, limiting the potential for further outward expansion.

- 14.1.9.4** Taking these factors together, the site makes a limited contribution to Green Belt Purpose (a), as development would not result in unrestricted sprawl of the built-up area.
- 14.1.10** **Purpose (b)** – to prevent neighbouring towns merging into one another:
The site lies adjacent to the existing settlement and, when considered alongside the proposed landscape buffers and retained open land, would not result in coalescence between Stansted Mountfitchet, Birchanger or Bishop's Stortford. The wide gap between settlements would remain intact.
- 14.1.11** **Purpose (d)** – to preserve the setting and special character of historic towns:
While the site contributes to the rural setting of nearby heritage assets, the impact is limited and does not play a fundamental role in preserving the historic character of a town in Green Belt terms. Any effects are addressed within the heritage assessment and mitigation.
- 14.1.11.1** On this basis, the site does not strongly contribute to purposes (a), (b) or (d).
- 14.1.12** The Council's Green Belt Study (Hankinson Duckett Associates, January 2026) found that the site makes a strong contribution, particularly in respect of purpose (a) (unrestricted sprawl), and should not be regarded as Grey Belt land. This evidence has been carefully considered and is afforded weight as part of the Council's technical evidence base.
- 14.1.13** The Green Belt Study was as a standalone piece of work to support development management decision-making considering recent changes to national policy, including the introduction of the concept of 'grey belt' within the NPPF. It has not been subject to public consultation, independent examination or formal adoption. While it is a relevant material consideration, the weight attributed to it in decision-taking must therefore be balanced against more site-specific evidence, including that prepared in support of the current application.
- 14.1.14** The Section 62A pre-application advice (May 2025) and the Council's Green Belt Study both provide site-specific, site-visited assessments and should be treated as credible but differing professional opinions. The Inspector concludes the site does not strongly contribute to purposes (a), (b) or (d) and can be regarded as Grey Belt (subject to paragraph 155), whereas the Study takes a more cautious view. In light of this disagreement, regard must be had to other material considerations, including the site's planning history, surrounding development pattern and the applicant's evidence, which collectively support the conclusion that the site performs a reduced Green Belt function and is appropriately identified as Grey Belt land.

14.1.15 The applicant's Green Belt Appraisal also raises substantive methodological criticism of the Council's Green Belt Study, including the treatment of Stansted Airport as a "large built-up area" and the limited recognition of strong physical boundaries that contain the site. In particular, the M11 provides a clear and defensible western boundary, while further containment is provided by established woodland belts and field patterns, defined transport corridors, and the edge of development associated with Stansted Mountfitchet and airport-related uses. These features materially limit both the physical and perceptual relationship of the site with the wider Green Belt. These matters further inform the overall assessment.

14.1.16 In weighing the competing evidence, Officers have had regard to:

- the site-specific conclusions of the Planning Inspectorate;
- the applicant's supporting evidence;
- the Council's Green Belt Study; and
- the need to exercise planning judgement in accordance with national policy.

14.1.17 While the Council's Green Belt Study is an important material consideration, it is not determinative, and it is appropriate to depart from its conclusions where justified by site-specific evidence and planning judgement. Weight is also given to the recent grant of planning permission for a solar farm to the south of the site under UTT/25/1742/FUL. While not equivalent to built development, it introduces substantial infrastructure and alters the perception of openness within this part of the Green Belt. This post-dates the Council's January 2026 Green Belt Study and demonstrates that the wider parcel is no longer experienced as wholly open countryside. As such, it is considered to impact the Study's conclusions in respect of Site G, particularly its assessment of contribution to purpose (a), and reinforces the conclusion that the site does not strongly contribute to Green Belt purposes.

14.1.18 On balance, it is concluded that Site G does not strongly contribute to Green Belt purposes (a), (b) or (d) and may therefore reasonably be regarded as Grey Belt land for the purposes of paragraph 155 of the NPPF. In particular, the site makes a limited contribution to preventing neighbouring towns from merging (purpose (b)), given the scale of separation and intervening features, and does not play a meaningful role in preserving the setting or special character of historic towns (purpose (d)).

14.1.19 For clarity, the application has been assessed against the requirements of paragraph 155–157 of the NPPF as follows:

14.1.19.1 Grey Belt:

14.1.19.2 The site is considered not to strongly contribute to Green Belt purposes (a), (b) or (d) and is therefore capable of being regarded as Grey Belt land.

Golden Rules compliance:
The proposal delivers:

- 14.1.19.3**
- 50% affordable housing;
 - necessary infrastructure secured via planning obligations; and
 - substantial accessible green space and recreational provision.

Conclusion:

In accordance with paragraph 157 of the NPPF, development on Grey Belt land that complies with the Golden Rules attracts substantial weight in favour of the proposal. The proposal is also supported by a demonstrable need for development and is in a sustainable location, as set out in the following sections. This forms a key consideration in the overall planning balance.

14.1.20 Housing Land Supply

14.1.21 The Council is currently undertaking an updated assessment of its Five-Year Housing Land Supply, using the most recent monitoring information and delivery evidence. The latest confirmed position of 4.77 years falls marginally below the five-year requirement, even with the application of the 20% buffer.

14.1.22 Given the limited extent of this shortfall, there is a reasonable prospect that the updated assessment will demonstrate that the Council is able to evidence a full five-year supply once recalculated. In addition, the Government has confirmed that the next Housing Delivery Test results—combining the 2024 and 2025 measurements—will be published during 2026, after which any revised Housing Delivery Test consequences, including a potential reduction of the buffer from 20% to 5%, would take effect on the following day.

14.1.23 In these circumstances, the current shortfall in housing land supply attracts weight in the planning balance. This reflects the marginal nature of the shortfall and the fact that the adopted Local Plan makes provision for meeting housing needs in full. Nevertheless, at the time of determination the Council cannot demonstrate a full five-year housing land supply, and paragraph 11(d) of the NPPF remains engaged insofar as it relates to policies concerning the supply of housing.

14.1.24 Grey Belt Golden Rules

14.1.25 Paragraphs 156 and 157 of the NPPF set out the Golden Rules which apply to major housing development on Grey Belt land. These require the provision of:

- At least 50% affordable housing, unless viability evidence demonstrates this is not achievable;
- Necessary improvements to local or national infrastructure to support the development; and
- New or improved publicly accessible green spaces, with good quality green space available within walking distance of residents.

14.1.26 In this case:

- The proposal includes provision for 50% affordable housing, in accordance with paragraph 156(a) of the NPPF;
- The development is accompanied by proposed financial contributions and on-site works intended to mitigate impacts on local infrastructure, which would be secured through planning conditions and/or a legal agreement; and
- The scheme includes the delivery of new public open space, enhanced access to the surrounding countryside, and improvements to green infrastructure, meeting the requirements of paragraphs 156(c) and 157 of the Framework.

14.1.27 Paragraph 157 of the NPPF also confirms that where development involving housing on Grey Belt land complies with the Golden Rules, this should be given substantial weight in the decision-making process.

14.1.28 **Landscape and Visual Assessment**

14.1.29 The landscape and visual effects of the proposed development have been assessed within the submitted Environmental Statement, including a detailed Landscape and Visual Impact Assessment (LVIA). The assessment considers the likely significant effects on landscape character and visual amenity arising from the development at construction, Year 1 and at Year 15 following establishment of mitigation planting. In reaching a view, the Local Planning Authority has had regard to the findings of the LVIA, the site-specific context, consultation responses, and the relevant policy framework, including Core Policy 41 of the Uttlesford Local Plan. The assessment below provides a balanced consideration of the identified harm, the extent to which this is moderated through design and mitigation, and the weight to be attributed to these effects in the overall planning balance

14.1.30 The site comprises agricultural land located on the edge of Stansted Mountfitchet. It lies within the Stort Valley Landscape Character Area,

characterised by a shallow and enclosed valley form, hedgerows, tree belts and small woodland blocks, with generally limited long-distance views. The land is not within a designated landscape and, while it exhibits typical local landscape characteristics, it is assessed as being of medium landscape value at Birchanger and medium-low value at Stansted Mountfitchet. Established vegetation along site boundaries provides a degree of containment and contributes positively to local character.

- 14.1.31** The site forms part of a transitional landscape at the urban–rural edge rather than an isolated or remote tract of countryside, which influences both its sensitivity to change and the extent to which development can be assimilated. The proposed development would result in a permanent change in land use from agriculture to built development, fundamentally altering the character of the site itself. This gives rise to major to moderate adverse landscape effects at site level, both at Year 1 and at Year 15, reflecting the scale and nature of the change. At the wider study-area level, landscape effects are more limited due to boundary vegetation, landform and the relationship of the sites to the existing settlement edges. Landscape effects beyond the site are assessed as moderate to minor adverse at Birchanger and minor adverse at Stansted Mountfitchet, reducing in perceived intensity over time as mitigation planting matures.
- 14.1.32** Visual effects are experienced primarily by users of nearby Public Rights of Way and local roads. Many viewpoints are already filtered or screened by existing vegetation, resulting in no, negligible or minor effects in most locations. More significant effects occur where routes pass through or immediately adjacent to the site, where major adverse visual effects are identified for certain receptors, reflecting proximity and open views across the land. Over the longer term, additional tree planting and landscape buffers would reduce intervisibility and soften views, though some significant effects remain due to the fundamental change in outlook.
- 14.1.33** The scheme incorporates embedded mitigation at the outset, including retention of existing trees and hedgerows, reinforcement planting around site boundaries, landscaped buffers, public open space and a planted acoustic bund adjacent to the M11. These measures are intended to reduce prominence, filter views and integrate development into the surrounding landscape. The LVIA confirms that mitigation will moderate the scale and extent of effects, particularly in the longer term, but cannot fully remove significant effects where development replaces open fields.
- 14.1.34** The LVIA concludes that the proposal would result in significant and permanent adverse effects on the landscape character of the site itself, which is an inevitable consequence of development at this location. However, effects on the wider landscape and visual amenity are more limited and localised and are reduced over time through a

landscape-led design approach and comprehensive mitigation. No cumulative visual effects are identified between the Birchanger and Stansted Mountfitchet elements of the scheme. The assessment also confirms that the development would not give rise to perceived settlement coalescence when experienced from the wider landscape, with strategic gaps remaining intact.

- 14.1.35** The proposed development has been reviewed by the Council's Principal Landscape Officer, who raises no objection to the scheme. The Landscape Officer considers the proposals to represent a well-designed and landscape-led approach, with a strong level of detail and a clear response to the site's context and sensitivities. The scheme is positively noted for its structured landscape framework, including the retention and reinforcement of field boundaries, provision of character areas and green corridors, and the integration of new planting and open spaces to support legibility, containment and visual mitigation.
- 14.1.36** Tree impacts are limited to low-quality or dead specimens, with no trees of significant landscape value proposed for removal, and appropriate protection measures secured for retained trees in accordance with best practice. In visual terms, the Landscape Officer acknowledges that development of this scale will inevitably give rise to change; however, it is concluded that the visual impacts have been carefully considered and appropriately mitigated, with existing vegetation and proposed planting providing effective screening from public viewpoints, including nearby roads and public rights of way. Overall, the Landscape Officer advises that, subject to conditions controlling implementation and long-term management of the landscaping scheme, the proposals are acceptable in landscape and visual terms.
- 14.1.37** The proposed development would result in a fundamental and permanent change in land use from open agricultural land to built form. The Landscape and Visual Impact Assessment (LVIA) identifies this as giving rise to Major to Moderate adverse landscape effects at the site level, reflecting a high magnitude of change within a landscape of medium value. Officers agree with this assessment. This represents a clear and unavoidable landscape harm which weighs against the proposal.
- 14.1.38** It is important to distinguish between the magnitude of effect identified within the LVIA and the planning weight to be attributed to that harm. While the effects at the site level are significant in technical terms, the extent of that harm is geographically localised and does not extend widely into the surrounding landscape.
- 14.1.39** In this regard, Officers have particular regard to the following:

- the site is not subject to any national or local landscape designation;
- the landscape forms part of a transitional settlement edge, rather than a remote or highly sensitive rural landscape;
- existing vegetation, landform and field boundaries provide a strong degree of containment, limiting wider visibility;
- effects on the wider landscape are limited in extent, being assessed as moderate to minor adverse or less and reducing over time as mitigation planting matures; and
- settlement separation would be maintained, with no coalescence identified.

14.1.40 The scheme has also been reviewed by the Council's Principal Landscape Officer, who raises no objection and confirms that the proposed landscape-led approach, structural planting and long-term management framework provide an effective and appropriate response to the site's context.

14.1.41 In policy terms, Core Policy 41 seeks to conserve and enhance landscape character but does not preclude change where development is appropriately located and designed, particularly at settlement edges. While the proposal would not conserve the existing character of the site itself, it would avoid unacceptable wider landscape harm and demonstrates a structured approach to integration through design and mitigation.

14.1.42 Taking all matters into account, Officers conclude that the proposal would result in significant adverse effects at the site level which attract weight against the proposal. However, those effects are localised, mitigated and not experienced across the wider landscape in a significant or harmful way. The landscape and visual harm are therefore a material consideration but is not of such extent, scale or sensitivity that it would justify refusal in isolation. Accordingly, the landscape and visual effects are afforded moderate weight in the overall planning balance.

14.2 B) Suitability and Location

14.2.1 In assessing the suitability and location of the application site, the Local Planning Authority has had regard to national planning policy, the Uttlesford Local Plan, and the information submitted in support of the application, including the Transport Assessment, Travel Plan, Environmental Statement, and the Council's Sustainable Transport and Active Travel considerations.

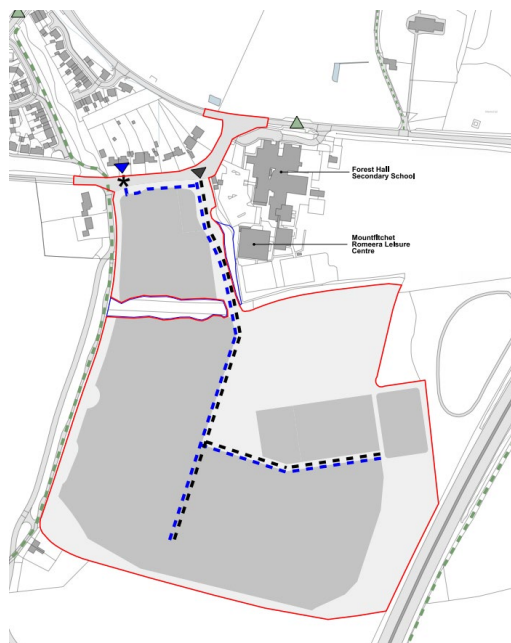
14.2.2 Policy context

14.2.3 The National Planning Policy Framework identifies the importance of locating development in sustainable locations and managing patterns of growth to reduce the need to travel. Paragraph 110 of the NPPF

states that significant development should be focused on locations which are, or can be made, sustainable through limiting the need to travel and offering a genuine choice of transport modes, recognising that opportunities to maximise sustainable transport solutions will vary between urban and rural areas. Paragraphs 115 and 117 further require development to prioritise pedestrian and cycle movement, facilitate access to high-quality public transport, and ensure that any impacts on the transport network can be mitigated to an acceptable degree.

- 14.2.4** These objectives are reflected in the adopted Uttlesford Local Plan, which establishes a clear “sustainable transport first” approach. In particular:
- Core Policy 1 (Addressing Climate Change) requires development to be located and designed to reduce the need to travel and to promote walking, cycling and public transport.
 - Core Policy 26 (Providing for Sustainable Transport and Connectivity) requires development to prioritise sustainable modes of transport and improve accessibility and connectivity.
 - Core Policy 27 (Assessing the Impact of Development on Transport Infrastructure) requires development to demonstrate that safe and suitable access can be achieved for all users and that transport impacts can be satisfactorily mitigated.
 - Core Policy 28 (Active Travel – Walking and Cycling) seeks to secure high-quality walking and cycling routes as an integral part of development proposals.
- 14.2.5** The suitability of the site therefore falls to be assessed against these adopted policies, alongside the relevant provisions of the NPPF.
- 14.2.6** Site context and accessibility
- 14.2.7** The application site lies on the southern edge of Stansted Mountfitchet, adjoining the existing settlement and close to established residential areas, education facilities, employment opportunities and public transport infrastructure. In spatial terms, the site relates directly to the settlement and does not represent isolated or sporadic development in the wider countryside.
- 14.2.8** In locational sustainability terms, the site performs relatively well within the District. Evidence from the Government’s Connectivity Metric places the site within a moderately connected corridor, and Stansted Mountfitchet benefits from a mainline railway station, providing direct services to London, Cambridge and Stansted Airport. Bus services are also available along the B1383 corridor, providing connectivity to nearby settlements and key employment areas.

- 14.2.9** At outline stage, the appropriate consideration is whether a deliverable and policy-compliant strategy has been demonstrated in principle, rather than whether all detailed design and engineering matters have been finalised. In this respect, the submitted documents identify the key corridors, connections and interventions necessary to support sustainable travel and reduce reliance on the private car.
- 14.2.10** Pedestrian, cycling and e-bike provision
- 14.2.11** The proposals include a package of pedestrian, cycling and e-bike measures intended to align with the Local Plan's Sustainable Transport First approach. A permeable internal network of pedestrian and cycle routes is proposed, designed to prioritise direct, legible and overlooked movement (natural surveillance) on foot and by cycle, with connections to surrounding neighbourhoods, public rights of way and local facilities. The scheme also identifies a number of strategic off-site active travel links, including improved crossings and connections along key routes, the delivery of which would be secured through conditions and planning obligations.
- 14.2.12** There is clear support within the application documents for cycling and e-bike use, particularly through the submitted Travel Plan. Measures include:
- new and enhanced pedestrian and cycle routes within the site and links to the wider Public Rights of Way network;
 - provision of on-site cycle parking and supporting infrastructure, to be delivered at reserved matters stage in accordance with prevailing standards;
 - promotion of cycling and e-bike use, including the provision of e-bike vouchers and resident travel information; and
 - ongoing monitoring of travel behaviour, with the ability to introduce additional measures if required.
- 14.2.13** While elements of the off-site walking and cycling network are indicative at this outline stage and subject to detailed design and delivery mechanisms, the approach demonstrates regard to Core Policies 1, 26, 27 and 28, which seek to prioritise active travel over private car use and embed sustainable movement from the outset. The effectiveness and certainty of delivery of these measures is therefore a material consideration in the overall planning balance.



Key - Access and Movement

- | | | |
|---|---|--|
| — Site Boundary | --- Indicative alignment of main access road | ▼ Primary Access Point including Pedestrian / Cycle Access |
| — Additional Ownership Boundaries | --- Existing PROW - Bridleway | ▼ Pedestrian / Cycle Access Points |
| Highways Works
Indicative extents of existing carriageways, including upgrades, crossing points and pass points as required, new access points servicing individual parcels | --- Existing PROW - Footpath | * Indicative new at-grade crossing point |
| | --- Indicative alignment of Additional Active Travel Routes - Combined Pedestrian and Cycle | ▲ Key Local Bus Stops |

Plan 2: Access and Movement Plan

14.2.14 Securing quality, safety and usability

14.2.15 At this outline stage, pedestrian and cycle routes are shown indicatively to demonstrate connectivity and deliverability. To ensure that these routes provide safe, inclusive and suitable all-year-round access, it is reasonable and consistent with Core Policies 26–28 and NPPF paragraph 117 for the detailed design to be secured by planning condition.

14.2.16 Such conditions can require approval of route alignment, surface materials, widths, gradients, drainage, lighting (where appropriate), and safety measures such as passive surveillance and appropriate separation from vehicular traffic. This approach ensures policy compliance while allowing detailed design to respond to site-specific considerations at reserved matters stage.

14.2.17 Taking the above into account, the Local Planning Authority is satisfied that the site is suitably located for the proposed development. The submitted transport evidence demonstrates that the site can support walking, cycling and e-bike use, that sustainable transport has been prioritised in accordance with the adopted Local Plan, and that any impacts arising from the site's location can be appropriately mitigated.

14.2.18 The Transport Assessment demonstrates that the site is located in a sustainable and accessible position, adjoining the existing settlement of Stansted Mountfitchet and benefiting from established links to services, employment and transport infrastructure. The site is not isolated and relates closely to the existing urban area. The site benefits from good access to public transport, including Stansted Mountfitchet railway station within walking distance, providing frequent services to London, Cambridge and Stansted Airport, together with regular bus services along the B1383 corridor. These facilities offer realistic alternatives to private car use for a range of journeys.

14.2.19 Travel Plan and Modal Shift

The proposal is supported by a Framework Travel Plan, to be secured by condition and implemented prior to occupation. The Travel Plan includes measures to encourage walking, cycling, e-bike use and public transport, supported by travel information, incentives and ongoing monitoring through a nominated Travel Plan Co-ordinator.

14.2.20 The Transport Assessment includes a sensitivity test which assumes up to approximately 10% modal shift away from peak-hour vehicle trips, reflecting the potential influence of the proposed sustainable transport measures and Travel Plan. While the precise level of modal shift is inherently uncertain and cannot be guaranteed, this scenario demonstrates that there is a reasonable opportunity for further demand reduction beyond the baseline forecasts. On this basis, the assessment indicates that the residual transport impacts can be mitigated to an acceptable degree.

14.2.21 Taking the Transport Assessment and Travel Plan together, it is considered that:

- the site is suitably located in accessibility terms.
- the proposed mitigation is proportionate and deliverable; and
- the proposal would not result in unacceptable or severe transport impacts.

14.2.22 In addition, it is necessary to ensure that the development is supported by a comprehensive and deliverable Sustainable Transport Strategy which goes beyond baseline accessibility and actively promotes modal shift away from private car use. This will include the provision of shared mobility measures as part of an integrated transport offer for the site. Whilst the precise form of such provision will be determined at a later stage, it is essential that these measures are delivered in a coordinated, accessible and effective manner, integrated with walking, cycling and public transport infrastructure. The detailed scope, delivery and long-term operation of the Sustainable Transport Strategy, including shared mobility measures,

will be secured through planning conditions and the Section 106 Agreement to ensure compliance with Core Policies 26–28 and the objectives of the National Planning Policy Framework.

- 14.2.23** Overall, the site represents a sustainable location, with safe and suitable access achievable and impacts on the transport network mitigated to an acceptable level. While elements of the sustainable transport strategy are not fully detailed at this stage, these can be secured through planning conditions and legal obligations. Subject to this, the proposal complies with the Uttlesford Local Plan and the National Planning Policy Framework in respect of suitability and location.

14.3 C) Design, Landscaping and Heritage

- 14.3.1** The application is submitted in outline, with all matters reserved except access. Notwithstanding this, the proposal is supported by a comprehensive Design and Access Statement and a site-specific Design Code, which together establish a clear and robust framework for the future development of the site. These documents have been prepared in accordance with Policy 52 (Good Design Outcomes and Process) of the adopted Uttlesford Local Plan and the Uttlesford District-wide Design Code.

- 14.3.2** The adopted Local Plan places strong emphasis on achieving high-quality, context-responsive placemaking, particularly where development occurs at the edge of existing settlements. In this regard, the proposals adopt a landscape-led design approach, with the landscape forming the primary structuring element of the masterplan rather than an afterthought. Built form is arranged in a series of small-scale clusters and re-imagined farmsteads, set around greens, lanes, paddocks and shared spaces, reflecting the historic pattern and grain of Stansted Mountfitchet and nearby Essex villages.

- 14.3.3** The Council's Principal Urban Design Officer has reviewed the proposals and confirms that they are of exemplary and exceptional design quality, describing the scheme as genuinely place-specific and noting that the landscape-led approach is both authentic and well-executed. The use of distinct character areas, pedestrian-dominated streets and car-free or low-car environments is supported and is considered to create a strong sense of identity, legibility and arrival across the site.

- 14.3.4** Building heights and massing are controlled through the parameter plans and illustrative material, with development generally limited to 2–2.5 storeys, with limited opportunities for slightly taller elements at key locations to provide visual interest and legibility. Detailed matters of appearance, layout and scale would be subject to assessment at reserved matters stage, guided by the approved Design Code and controlled by planning conditions.

- 14.3.5** Overall, the proposals are considered to accord strongly with Policy 52, delivering a clear design process, a coherent vision and a high standard of place-making appropriate to an edge-of-settlement location.
- 14.3.6** Landscape and green infrastructure form a central component of the proposal and are fundamental to its compliance with Policies 39 (Green and Blue Infrastructure), 40 (Biodiversity and Geodiversity) and 41 (Landscape Character and Visual Amenity) of the adopted Local Plan.
- 14.3.7** The site lies within the Stort Valley landscape character area, and the submitted Landscape and Visual Impact Assessment confirms that the proposals respond positively to its defining characteristics, including landform, field patterns, vegetation structure and settlement edges. Existing trees, hedgerows and landscape features would be retained wherever possible and reinforced through additional native planting, helping to integrate the development into its wider rural setting.
- 14.3.8** The scheme proposes a multi-layered network of green spaces, including village greens, paddock landscapes, garden courts, margins and a substantial eastern landscape edge which also serves an acoustic mitigation role in relation to the M11. These spaces are designed to be multifunctional, delivering biodiversity enhancement, sustainable drainage, recreation and visual containment.
- 14.3.9** The reinstatement of historic field boundaries, hedgerows and woodland copses, both within the site and across land in the applicant's control beyond the red line, is a particularly positive element of the proposal. This approach repairs landscape structure eroded by intensive agricultural practices and assists in maintaining long-term settlement separation, consistent with Local Plan objectives.
- 14.3.10** Notwithstanding these positive attributes, it is recognised that the development would result in a permanent change in land use from open agricultural land to built development, giving rise to harm at the site level, as identified within the Landscape and Visual Impact Assessment. The Landscape and Visual Impact Assessment identifies major to moderate adverse effects at the site level, reducing over time as mitigation planting establishes, with more localised and limited effects in the wider landscape.
- 14.3.11** The Council's Principal Landscape Officer has reviewed the proposals and raises no objection. The landscape strategy is considered to represent a well-designed and comprehensive response to the site's context, with a strong structural landscape framework incorporating retained field boundaries, tree belts and new

planting. The limited loss of trees, restricted to low-quality specimens, is accepted, and appropriate protection measures are proposed for retained vegetation. The Landscape Officer further advises that the scheme successfully integrates development within its landscape setting through effective screening, buffering and reinforcement planting, such that wider visual impacts are appropriately mitigated.

14.3.12 The proposals commit to delivering at least 20% Biodiversity Net Gain, exceeding statutory minimum requirements, through habitat creation, enhancement and long-term management. Opportunities for walking, cycling and informal recreation are integrated throughout the green infrastructure network, contributing to both health and wellbeing outcomes and sustainable movement patterns.

14.3.13 Officers agree with this assessment. The landscape-led design approach, together with the retention of key features and the provision of a robust green infrastructure network, provides confidence that the development can be assimilated into the surrounding landscape without unacceptable wider harm. Subject to conditions securing detailed landscape design, implementation and long-term management, the proposals are therefore considered acceptable in landscape terms.

14.3.14 Significant weight is afforded to the design quality of the proposed development. The Council's Principal Urban Design Officer describes the scheme as exemplary and exceptional, noting that it represents a genuinely place-specific and landscape-led response which has evolved positively through extensive pre-application engagement. Officers agree with this assessment. The proposal demonstrates a rare and authentic application of landscape-led design, where landscape is not a residual element but the primary structuring component of the masterplan. This approach underpins the scheme's character, layout and identity, resulting in a development which is both distinctive and contextually responsive. When secured through the submitted Design Code and associated conditions, this provides a robust basis to ensure the quality of development is carried through to reserved matters stage, in full accordance with Core Policy 52 and national design objectives.

14.3.15 **Designated and Non-Designated Heritage Assets**

14.3.16 The application site contains no designated or non-designated heritage assets and lies outside any conservation area. In compliance with Policy 44 (Historic Environment) of the adopted Local Plan and Chapter 16 of the NPPF, a detailed Heritage Impact Assessment (HIA) has been submitted to assess the effects of the proposal on nearby heritage assets, with particular regard to their settings.

- 14.3.17** The assets assessed outside of the application site include the Grade II* Church of St Mary the Virgin, Forest Hall (Grade II) and the Parsonage Farmhouse group (Grade II). The assessment concludes, and the Council's Principal Conservation Officer agrees, that there would be no direct impacts on any heritage asset and that any effects are limited to changes to setting.
- 14.3.18** For the majority of assets, including the church and Forest Hall, no harm to significance is identified due to distance, existing development, vegetation and limited intervisibility. In relation to the Parsonage Farmhouse group, the development has the potential to result in a low level of less-than-substantial harm to aspects of setting through the introduction of built form on former agricultural land. This harm is assessed to be at the lower end of the less-than-substantial spectrum and is capable of mitigation through landscape buffers, retention of vegetation and sensitive layout.
- 14.3.19** In accordance with Policy 44 and paragraph 215 of the NPPF, this limited harm would need to be weighed against the public benefits of the proposal, including housing delivery (notably affordable housing), landscape enhancement and improved access to green infrastructure. The Conservation Officer confirms that there are no heritage grounds that would preclude the development, subject to the design principles being secured and carried through to the reserved matters stage.
- 14.3.20** Given the scale of public benefits associated with the proposal, including housing delivery, affordable housing provision, landscape enhancement and long-term settlement separation, the identified heritage harm is capable of being outweighed in the overall planning balance, subject to appropriate controls.
- 14.3.20** As the application is in outline form, it is advised that the Heritage Impact Assessment is updated at Reserved Matters stage, and detailed proposals demonstrate continued collaboration between the design and heritage teams, including site-specific illustrations, sections and verified views, to ensure that the principles assessed at outline stage are carried through into delivery.
- 14.3.21** Subject to these safeguards, the proposal is considered to comply with the statutory duties under Sections 66 and 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990 and with national and local heritage policy.
- 14.3.22** **Archaeology**
- 14.3.23** A geophysical survey has been undertaken across the site and reviewed by the Council's archaeological advisors at Essex Place Services. The results indicate a low archaeological potential within the application area.

14.3.24 Given the scale of development, the archaeological advisor recommends a precautionary, phased approach secured by condition, comprising trial trenching followed by mitigation where necessary, in accordance with paragraph 218 of the National Planning Policy Framework (2024). This work is advised to take place prior to the submission of any Reserved Matters application, allowing any archaeological constraints to be appropriately addressed before detailed design is fixed.

14.3.25 Essex County Council confirms that this approach is appropriate and that there are no archaeological grounds that would preclude the grant of planning permission, subject to the recommended conditions being imposed.

14.3.26 This approach will ensure that archaeological interest is appropriately identified, recorded and, where necessary, preserved, without imposing unnecessary constraints on sustainable development. Subject to the recommended conditions, the proposal accords with national and local planning policy relating to the historic environment.

14.3.27 **Public Art**

14.3.28 The importance of public art as part of high-quality placemaking is recognised within national policy, Development Policy 9 of the Uttlesford Local Plan advises public art can play a valuable role in reinforcing local identity, enhancing the quality of the public realm and contributing to a strong sense of place.

14.3.29 Given the outline nature of the application, no detailed public art proposals are provided at this stage. However, it is considered appropriate for public art to be addressed at Reserved Matters stage, once the detailed layout, landscaping and public spaces are finalised.

14.3.30 The provision of public art will be secured through the Section 106 agreement, requiring either on-site delivery or an agreed contribution, alongside the submission of details at Reserved Matters stage to ensure the art is appropriately integrated with the development and its landscape-led design. Subject to this approach, the proposal can comply with local and national design policy objectives.

14.4 **D) Housing Mix and Tenure**

14.4.1 Core Policy 53 requires major residential development to deliver a balanced mix of housing types, sizes and tenures to meet identified housing needs and support the creation of inclusive and mixed communities.

14.4.2 The outline application proposes up to 300 dwellings, with an intention to deliver a broad range of 1, 2, 3 and 4+ bedroom homes across both market and affordable tenures. Although the precise

dwelling mix is indicative at this stage, the submitted Planning Statement and Design and Access Statement confirm that the eventual mix will be informed by the Council's most up-to-date housing evidence base and refined at Reserved Matters stage.

- 14.4.3** The Housing Officer has advised that the final mix of affordable units can appropriately be agreed through the Section 106 agreement and detailed at the Discharge of First Occupation (DFO) stage, which is consistent with the outline nature of the application. In addition, the Council's Housing Strategy 2021–2026 requirement for 5% of the affordable housing mix to be provided as bungalows has been identified and can be secured through legal agreement.
- 14.4.4** Overall, subject to detailed agreement at Reserved Matters stage, the principle of the proposed housing mix is considered capable of complying with Core Policy 53.
- 14.4.5** Core Policy 55 requires all new dwellings to meet the Nationally Described Space Standards (NDSS) as a minimum.
- 14.4.6** The applicant has committed that both market and affordable dwellings will meet NDSS. However, the Housing Officer has noted that some of the lower ends of the indicative unit size ranges shown in the Design and Access Statement do not currently meet NDSS, particularly for some smaller units.
- 14.4.7** This matter is capable of being addressed through condition and requiring compliance with NDSS at Reserved Matters stage. Given the outline status of the application, and the applicant's stated intention to meet policy requirements, it is considered reasonable to secure compliance with Core Policy 55 through the next stage of the process.
- 14.4.8** Core Policy 56 requires major residential development to deliver 35% affordable housing, with a tenure split of 70% Affordable/Social Rent and 30% Affordable Home Ownership, unless otherwise justified.
- 14.4.9** The application proposes a higher level of affordable housing provision, with up to 50% affordable housing, equating to a maximum of 150 affordable dwellings. This level of provision accords with the "Golden Rules" set out in national policy for Grey Belt development and is strongly supported in principle, particularly given the Council's current housing supply position.
- 14.4.10** The Council's Housing Officer has clarified that tenure split of 70% Affordable/Social Rent and 30% Affordable Home Ownership.
- 14.4.11** The applicant's proposed affordability approach is therefore broadly aligned with Council expectations. The precise tenure mix, size mix and distribution of affordable units can be finalised through the

Section 106 agreement to ensure policy compliance and responsiveness to up-to-date evidence at the point of delivery. In accordance with Core Policy 56, the affordable dwellings are to be tenure blind, distributed throughout the development, and delivered to equivalent design and space standards as market housing.

- 14.4.12** In respect of specialist housing, Core Policy 54 requires that at least 5% of dwellings are provided as extra care, sheltered or retirement accommodation (Use Class C3). This requirement will be secured through the Section 106 Agreement. Given the outline nature of the proposal, a mechanism will require the submission of a Specialist Housing Statement and Viability Assessment prior to the first Reserved Matters application, to confirm deliverability. Where viable, the full 5% provision will be delivered; where robustly justified and independently verified otherwise, an alternative provision may be agreed.

14.4.13 Housing Mix and Tenure – Overall Conclusion

In summary, the proposed development:

- Delivers a policy-compliant and uplifted level of affordable housing,
- Can provide an appropriate and policy-led housing mix, and
- Can meet Nationally Described Space Standards, subject to detailed control.

- 14.4.14** Provision is also made for specialist housing in accordance with Core Policy 54, with the required 5% to be secured through the Section 106 Agreement (subject to viability review) and detailed at Reserved Matters stage. Having regard to the outline nature of the application, the housing mix and tenure arrangements are considered acceptable in principle and capable of being secured through planning conditions and a Section 106 agreement, such that the proposal would comply with Core Policies 53, 54, 55 and 56 of the Uttlesford Local Plan.

14.5 E) Access and Parking

- 14.5.1** The National Planning Policy Framework (NPPF) makes clear that transport issues should be considered at the earliest stages of development to ensure that safe and suitable access can be achieved for all users and that development supports sustainable travel patterns. Paragraphs 109–117 of the NPPF (December 2024) place emphasis on a vision-led approach, prioritising walking, cycling and public transport, while confirming that development should only be prevented or refused on highways grounds where the residual cumulative impacts would be severe, or where there would be an unacceptable impact on highway safety following mitigation.

14.5.2 Uttlesford Local Plan 2021–2041 (March 2026) is consistent with this approach. Core Policies 26, 27, 28 and 31 require development to prioritise sustainable transport modes, provide safe and suitable access for all users, limit reliance on the private car, and ensure that parking provision responds appropriately to the site context and the Council's adopted parking standards.

15.5.3 Access Arrangements

14.5.4 Vehicular access to the site is proposed from Forest Hall Road, which lies immediately to the north of the application site and serves the existing Forest Hall Secondary School, leisure centre and surrounding residential areas. The principle of access is a matter for determination at outline stage and has therefore been assessed in detail within the submitted Transport Assessment, including junction modelling, safety audits and swept-path analysis.

14.5.5 The proposed access arrangement comprises a priority junction designed to accommodate all vehicle types likely to serve the development, including refuse and emergency vehicles. The submitted plans demonstrate that safe and suitable access can be achieved for all users, with appropriate visibility splays, carriageway width and footway provision, in accordance with Core Policy 27 of the adopted Local Plan and paragraphs 109–117 of the NPPF.

14.5.6 Importantly, the access strategy has been developed alongside a vision-led movement hierarchy, with pedestrians and cyclists prioritised at the point of access. Footway connections are proposed to link directly into existing pedestrian infrastructure along Forest Hall Road, providing safe and convenient routes to the adjacent school, leisure centre, bus stops and wider village network. A new controlled pedestrian and cycle crossing is proposed to improve permeability and safety across Forest Hall Road, responding to the needs of both future residents and existing users.

14.5.7 The Transport Assessment confirms that, subject to the proposed mitigation, the access junction would operate within acceptable capacity limits, with no unacceptable impact on highway safety or the wider highway network. Essex County Council, as Highway Authority, has been actively engaged through the design process, and the access strategy reflects ongoing technical discussions.

14.5.8 In line with Core Policies 26 and 28, the access arrangements form part of a broader sustainable transport strategy intended to reduce reliance on the private car. While full details of internal layout, parking distribution and access to individual plots would be considered at reserved matters stage, the proposed access establishes a clear framework that supports active travel, public transport use and safe vehicle movements from the outset.

- 14.5.9** National Highways has been consulted as the statutory authority responsible for the Strategic Road Network (SRN), including the M11 Junction 8 and the A120 trunk road, which lie within the wider area of influence of the development. Following review of the submitted Transport Assessment and subsequent technical note, National Highways confirms that the proposals would have no severe impact on the operation or safety of the SRN, including under worst-case cumulative development scenarios.
- 14.5.10** All vehicular access is taken from the local road network, and no direct access to the SRN is proposed. National Highways has therefore raised no objection to the application, subject to a recommended condition requiring the submission and implementation of a Construction Traffic Management Plan, to ensure that construction traffic does not adversely affect the safe and efficient operation of the M11 and A120. On this basis, the proposal accords with national policy and does not conflict with the strategic function of the SRN.
- 14.5.11** Taken together, the evidence submitted and the responses from the highway consultees confirm that the proposed access arrangements are safe, appropriate and policy-compliant. Subject to the recommended conditions and planning obligations, the access arrangements are considered acceptable and capable of supporting the proposed development without giving rise to unacceptable highway impacts.
- 14.5.12** Parking provision is required to comply with Core Policy 31 of the Uttlesford Local Plan and the Essex Parking Standards, alongside the design principles set out in the Uttlesford Design Code. At outline stage, it is appropriate to assess parking in terms of broad compliance rather than detailed quantum or layout. The application demonstrates the capacity to accommodate parking in a manner that avoids car-dominated streets and supports high quality placemaking, consistent with both national policy objectives and the Council's design-led ambitions.
- 14.5.13** Detailed parking numbers, layout, electric vehicle charging provision and cycle parking will be capable of being secured at the reserved matters stage, informed by the Highway Authority's detailed input.
- 14.5.14** Parking provision is required to comply with Core Policy 31 of the Uttlesford Local Plan and the Essex Parking Standards, alongside the design principles set out in the Uttlesford Design Code. At outline stage, it is appropriate to assess parking in terms of broad compliance rather than detailed quantum or layout. The application demonstrates the capacity to accommodate parking in a manner that avoids car-dominated streets and supports high quality placemaking, consistent with both national policy objectives and the Council's design-led ambitions.

14.5.15 Detailed parking numbers, layout, electric vehicle charging provision and cycle parking will be capable of being secured at the reserved matters stage, informed by the Highway Authority's detailed input.

14.6 F) Neighbouring Amenity

14.6.1 The application site is located to the south of Stansted Mountfitchet and is predominantly bounded by educational, leisure and agricultural land, with existing residential properties set at some distance from the main development parcels. The outline application establishes the broad disposition of development and access only; detailed matters of layout, scale and appearance would be addressed at the reserved matters stage.

14.6.2 At this stage, Officers consider that the principle of residential development on the site would not give rise to unacceptable harm to the amenity of existing neighbouring occupiers. The submitted parameters and illustrative material indicate that building heights would generally be limited and that landscape buffers, separation distances and orientation can be incorporated into future detailed design to avoid undue overlooking, dominance or loss of privacy. These matters can be satisfactorily controlled through reserved matters submissions and appropriate conditions.

14.6.3 Potential impacts associated with construction activity, including noise, dust and disturbance, are temporary in nature and can be managed through a Construction Management Plan, to be secured by condition.

14.6.4 The proposal has been assessed against the relevant provisions of the Uttlesford Local Plan, in particular:

- Core Policy 52 – Good Design Outcomes and Process, which requires development to achieve high standards of design that protect the amenity of existing and future occupiers, including avoiding unacceptable impacts from overlooking, overbearing development and loss of privacy
- Core Policy 53 – Standards for New Residential Development, which seeks to ensure that development provides acceptable living conditions and safeguards residential amenity.

14.6.5 At a national level, the proposal has also been considered against the National Planning Policy Framework (NPPF), specifically:

- Paragraph 135, which seeks to ensure development is sympathetic to local character while establishing a strong sense of place; and

- Paragraph 135(f) (and related design principles), which requires that development creates places with a high standard of amenity for existing and future users.

14.6.6 In relation to noise, Environmental Health notes the site's proximity to a number of potential noise sources, including the M11 motorway, Parsonage Lane Business Park, Mountfitchet High School and the Mountfitchet Leisure Centre. While an initial noise assessment has been submitted, Environmental Health advises that additional baseline noise monitoring and further assessment will be required to ensure that all significant noise sources are fully understood and that appropriate mitigation is secured. Conditions are therefore recommended requiring a detailed Noise Impact Assessment, a Noise Mitigation Scheme and, where necessary, alternative ventilation arrangements to safeguard future residential amenity.

14.6.7 In addition, Environmental Health has advised that the site is affected by aircraft noise associated with Stansted Airport and that future increases in aircraft movements should be taken into account. Accordingly, any further noise assessment shall also consider forecast aircraft noise levels to ensure that appropriate mitigation is incorporated into the design of the development." However, there are other closer settlements to the airport such as Burton End, Tye Green and Mole Hill Green. The recent airport expansion application has taken noise levels into account in the vicinity, and this was not considered to provide unacceptable noise level with its future expansion. It should be noted that as part of that there shall be no increase in aircraft movement.

14.6.8 Given the outline nature of the application, detailed impacts relating to overlooking, separation distances and boundary treatments cannot be precisely assessed at this stage. However, these matters are capable of being satisfactorily addressed through the reserved matters process. Any future reserved matters submission would be required to demonstrate full compliance with Core Policies 52 and 53, ensuring that dwelling siting, orientation and scale protect the privacy, outlook and daylight of neighbouring occupiers, including those properties and facilities located to the south of the site.

14.6.9 Access is the only matter for determination at this stage. The detailed internal layout, including the positioning of dwellings relative to site boundaries and neighbouring uses, will be considered comprehensively at reserved matters stage.

14.6.10 In terms of noise and disturbance, the Environmental Statement concludes that, subject to embedded mitigation measures, the operational phase of the development would not result in significant adverse effects on existing residential receptors. Any temporary disturbance during the construction phase can be adequately mitigated through conditions requiring a Construction Environmental

Management Plan, consistent with the expectations of Core Policy 52 and the NPPF.

- 14.6.11** Considering the outline nature of the proposal, the submitted parameter plans, and the conclusions of the Environmental Statement, it is considered that the site is capable of accommodating the proposed development without unacceptable harm to neighbouring amenity. The proposal accords with Core Policies 52 and 53 of the Uttlesford Local Plan and the amenity objectives of the NPPF, subject to detailed matters being appropriately addressed and controlled through the reserved matters stage and planning conditions.

14.7 G) Nature Conservation & Trees

14.7.1 Ecological Baseline and Designated Sites

- 14.7.2** Development proposals are required to protect and enhance biodiversity in accordance with Chapter 15 of the NPPF (2024), the Environment Act 2021, and Core Policies 39 (Green and Blue Infrastructure) and 40 (Biodiversity and Nature Recovery) of the Uttlesford Local Plan. Regard must be had to the protection of designated sites, the mitigation of recreational impacts, and the delivery of measurable biodiversity net gain. The application site is predominantly intensively managed arable land with limited intrinsic ecological value. Boundary features, including trees, tree lines, scrub and hedgerows, provide local habitat and connectivity within the wider landscape.

- 14.7.3** No statutory or non-statutory designated sites lie within the application site. However, the site falls within the identified Zone of Influence for recreational impacts on Hatfield Forest SSSI and National Nature Reserve, located approximately 3km from the site. This is a key material consideration in the assessment.

- 14.7.4** Several Local Wildlife Sites, including Digby Wood and Parsonage Spring, are present in the wider area and have been considered within the Environmental Statement.

14.7.5 Ecology Assessment and Consultation Responses

- 14.7.6** The proposal is supported by a detailed Environmental Statement (Ecology Chapter), informed by extensive field surveys spanning habitats, protected species and priority species. Key ecological features identified include:

- a nationally important bat assemblage, including barbastelle bats;

- breeding birds of local conservation interest; and boundary habitats contributing to ecological connectivity.

14.7.7 Natural England raises no objection, subject to the securing of mitigation to address potential recreational impacts on Hatfield Forest SSSI/NNR. Natural England confirms that appropriate mitigation must comprise:

- a per-dwelling contribution towards Strategic Access Management and Monitoring (SAMM) measures;
- provision of high-quality on-site Accessible Natural Greenspace (ANG); and
- a signposted circular dog-walking route of approximately 2.3–2.5km.

14.7.8 The development would result in the loss of predominantly low-value arable habitat and some disturbance to boundary features, giving rise to a minor adverse effect prior to mitigation. However, the Council's ecological adviser (Place Services) confirms that sufficient information has been provided and that impacts can be fully mitigated and made acceptable through the proposed mitigation measures, secured by condition and legal agreement.

14.7.9 Hatfield Forest Mitigation

14.7.10 The National Trust has highlighted the sensitivity of Hatfield Forest to recreational pressure and the importance of securing mitigation for new residential development within the Zone of Influence. The submitted scheme acknowledges these impacts and proposes:

- extensive on-site green infrastructure to provide attractive alternative recreational space for future residents; and
- a financial contribution towards off-site SAMM measures at Hatfield Forest, in line with Natural England advice and the emerging strategic mitigation approach.

14.7.11 Subject to securing the identified mitigation measures, including SAMM contributions, Accessible Natural Greenspace and the circular walking route, the proposal would not result in an adverse effect on the integrity of Hatfield Forest SSSI or National Nature Reserve, either alone or in combination with other plans or projects.

14.7.12 Biodiversity Net Gain (BNG)

14.7.13 The development is subject to the mandatory Biodiversity Net Gain (BNG) requirements of the Environment Act 2021, which require a minimum 10% net gain in biodiversity value. In addition the Uttlesford Local Plan Core Policy 40 seeks a minimum 20% Biodiversity Net Gain.

- 14.7.14** A detailed Biodiversity Net Gain Strategy, supported by Statutory Metric calculations, has been submitted. The Council's ecological advisers confirm that the information provided is sufficient at outline stage and demonstrates that the proposal can deliver in excess of 20% BNG, thereby exceeding both national and local policy requirements.
- 14.7.15** The submitted calculations indicate that the development would deliver:
- approximately 67% net gain in habitat units;
 - approximately 46% net gain in hedgerow units
- 14.7.16** The scheme delivers in excess of 20% Biodiversity Net Gain, significantly exceeding the statutory 10% requirement and aligning with Core Policy 40. This represents a substantial environmental benefit which attracts significant positive weight in the overall planning balance.
- 14.7.17** In accordance with legislation, a Biodiversity Gain Plan and a Habitat Management and Monitoring Plan would be required and approved prior to commencement, securing the long-term management of habitats for a minimum period of 30 years. On this basis, the proposal is considered to accord with the Environment Act 2021 and Core Policy 40 and is acceptable in Biodiversity Net Gain terms.
- 14.7.18** Trees and Landscape Features
- 14.7.19** The submitted parameter plans demonstrate that the development has been designed to:
- avoid irreplaceable habitats such as ancient woodland.
 - retain important boundary trees, tree lines and hedgerows.
 - provide appropriate buffers and stand-off distances; and
 - supplement existing tree covers through new native planting.
- 14.7.20** Tree protection, replacement planting and long-term management will be secured through appropriately worded conditions and a Landscape and Ecological Management Plan (LEMP), consistent with Core Policy 39 and national policy. The approach accords with best practice, including BS5837, and aligns with the positive conclusions of the Council's Landscape Officer.
- 14.7.21** Having regard to the Environmental Statement, consultation responses and the proposed mitigation framework, it is considered that:

- the development would not result in unacceptable harm to designated sites or protected species.
- recreational impacts on Hatfield Forest SSSI/NNR can be satisfactorily mitigated.
- mandatory Biodiversity Net Gain can be delivered and secured; and
- important trees and habitats can be protected and enhanced.

14.7.22 While the development gives rise to limited ecological harm at baseline, this is fully mitigated and outweighed by the substantial biodiversity enhancements secured, including significant net gain. The proposal therefore accords with national and local policy and weighs positively in the overall planning balance.

14.8 H) Climate Change

14.8.1 The application has been assessed against the National Planning Policy Framework (2024), the Uttlesford Local Plan (2021–2041), and relevant guidance relating to climate change mitigation and adaptation. Of particular relevance are Core Policies 1 (Addressing Climate Change), 22 (Net Zero Operational Carbon Development), 23 (Overheating) and 24 (Embodied Carbon).

14.8.2 The proposal is supported by an Outline Climate Change, Sustainability and Energy Strategy and a detailed Climate Change chapter within the Environmental Statement. Together, these documents demonstrate that the scheme has been designed from the outset to minimise greenhouse gas emissions and to be resilient to current and future climate change impacts.

14.8.3 In mitigation terms, the development would:

- adopt a fabric-first approach exceeding minimum Building Regulations standards.
- provide fossil-fuel-free heating via air source heat pumps.
- achieve a space heating demand of no more than 15 kWh/m²/year and an Energy Use Intensity of no more than 35 kWh/m²/year, as demonstrated through representative energy modelling.
- incorporate on-site renewable energy generation, primarily solar PV, to meet or exceed annual operational energy demand.
- limit water consumption to no more than 110 litres/person/day; and reduce transport-related emissions through site layout, active travel connections and travel planning measures.

14.8.4 In adaptation terms, the scheme incorporates:

- sustainable drainage systems designed to accommodate climate change rainfall allowances.

- green infrastructure and tree planting to reduce urban heat island effects.
- passive design measures to mitigate overheating, in accordance with the cooling hierarchy; and climate-resilient landscape design.

14.8.5 The Environmental Statement concludes that, with the embedded mitigation measures proposed, the development would result in no significant adverse effects in climate change terms, during either construction or operation. The submitted Climate Strategy demonstrates that the development can achieve the objectives of the Local Plan in relation to climate change and demonstrates that a net-zero operational carbon development is achievable. Given the outline nature of the application, detailed compliance will be secured reserved matters stage through condition. The delivery of net-zero operational carbon development and significant reductions in energy demand is afforded significant weight in the planning balance.

14.9 I) Environmental Health

14.9.1 The application has been reviewed by the Council's Environmental Health Officer, who raises no objection subject to conditions. The submitted Environmental Statement demonstrates that, in principle, the site is suitable for the proposed development and that environmental impacts can be appropriately controlled and mitigated

14.9.2 Noise

14.9.2.1 The site is influenced by a number of existing and future noise sources, including the M11 motorway, nearby employment uses, the adjacent school and leisure centre, and aircraft activity associated with Stansted Airport. While further detailed assessment is required to establish baseline conditions across all parts of the site, this can be secured by condition, together with appropriate mitigation measures including façade treatment and ventilation strategies. Subject to these measures, acceptable internal and external noise environments can be achieved for future occupiers, in accordance with Core Policy 44 (Noise) of the Uttlesford Local Plan and the aims of the National Planning Policy Framework in ensuring a high standard of amenity.

14.9.3 Contaminated Land

14.9.3.1 The Environmental Health Officer advises that further investigation is required in respect of potential land contamination, including the presence of made ground and former infilled areas. This matter can be satisfactorily addressed by condition requiring site investigation, remediation where necessary, and validation prior to occupation. Subject to these measures, risks to human health and the environment can be appropriately mitigated in accordance with Core Policy 42 (Pollution and Contamination) of the Uttlesford Local Plan and national policy.

14.9.4 Construction Impacts

14.9.4.1 Potential impacts arising during construction, including noise, dust and general disturbance, are temporary in nature and can be mitigated through the implementation of a Construction Environmental Management Plan secured by condition. This approach accords with Core Policy 42 and national policy objectives to minimise pollution and protect the amenity of existing and future occupiers.

14.9.5 Other Matters

14.9.5.1 Conditions are also recommended to address external lighting, in order to protect residential amenity and biodiversity, and to secure the provision of electric vehicle charging infrastructure in the interests of air quality and sustainable development. These measures accord with Core Policies 43 (Air Quality) and 44 (Noise) of the Uttlesford Local Plan and the wider environmental objectives of the National Planning Policy Framework.

14.9.6 Subject to the imposition of these conditions, it is considered that the proposal would not result in unacceptable impacts on residential amenity or environmental health. The development therefore accords with Core Policies 42, 43 and 44 of the Uttlesford Local Plan and the relevant provisions of the National Planning Policy Framework.

14.10 J) Flooding

14.10.1 Flood Risk

14.10.2 The Environment Agency Flood Map for Planning confirms that the entire site lies within Flood Zone 1 and is therefore at low risk of fluvial flooding. The submitted Flood Risk Assessment confirms that the site is not at risk from river flooding except in events exceeding the 1 in 1000-year return period.

14.10.3 Surface water flood mapping identifies most of the site as being at Very Low risk, with limited localised areas of low to medium surface water risk. Groundwater flood risk is assessed as Low to Medium, with all other sources of flooding (including sewer and reservoir flooding) identified as Low.

14.10.4 Given the site area exceeds 1 hectare, the submission of a Flood Risk Assessment accords with Core Policy 36 and demonstrates that the proposed development will be safe for its lifetime and will not increase flood risk elsewhere.

14.10.5 Sustainable Drainage and Surface Water Management

14.10.6 In accordance with Core Policy 37, the development incorporates a comprehensive Sustainable Drainage System (SuDS) strategy.

Surface water management has been designed in line with the CIRIA SuDS Manual, Essex County Council guidance, and national best practice.

14.10.7 The drainage strategy prioritises controlling runoff at source and replicating the pre-development greenfield runoff regime. Surface water discharge rates for the site will be restricted to greenfield run-off rates, with on-site attenuation provided to manage exceedance events.

Key components of the proposed SuDS approach include:

- attenuation basins sized to accommodate the 1 in 100-year rainfall event plus an appropriate climate change allowance;
- swales, bio-retention features and permeable paving to intercept and treat surface water.
- controlled discharge to adjacent watercourses where infiltration is not feasible; and
- safe exceedance routing to ensure no on-site or off-site flooding occurs during extreme events.

14.10.8 The attenuation basins are also designed to satisfy the 24-hour half-drain down requirement, with additional long-term storage provided to manage consecutive storm events. This approach ensures full compliance with Core Policy 37 and with the Council's Strategic Flood Risk Assessment.

14.10.9 The attenuation basins are also designed to satisfy the 24-hour half-drain down requirement, with additional long-term storage provided to manage consecutive storm events. This approach ensures full compliance with Core Policy 37 and with the Council's Strategic Flood Risk Assessment.

14.10.10 Watercourse Protection

14.10.11 Where surface water outfalls connect to existing watercourses, development will maintain the required buffer distances in accordance with Core Policy 35, with no built development within the buffer other than soft landscaping, drainage or informal amenity uses. This ensures protection of ecological function, water quality and channel maintenance.

14.10.11 Foul Water Drainage

14.10.12 Foul drainage will be provided via a conventional piped system connecting to the public network. Where pumping is required due to site topography, this will be addressed as part of the detailed design, ensuring appropriate capacity, resilience and compliance with Core Policy 34. No occupation will occur until adequate foul water infrastructure capacity is confirmed.

14.10.13 Climate Change and Lifetime Resilience

14.10.14 The drainage design has explicitly accounted for climate change impacts, including increased rainfall intensity and frequency, in line with Core Policy 1. The layout and capacity of the drainage infrastructure ensures the development will remain resilient for its lifetime and will not lead to increased downstream flood risk.

14.10.15 The proposed development has been fully assessed in respect of flood risk and surface water drainage and is considered to be acceptable in principle. The site lies within Flood Zone 1 and is therefore at low risk of fluvial flooding. A Flood Risk Assessment and outline drainage strategy have been submitted, demonstrating that surface water can be effectively managed through a Sustainable Drainage System (SuDS) designed to control runoff to greenfield rates and accommodate climate change allowances.

14.10.16 Essex County Council, in its role as Lead Local Flood Authority, has reviewed the submitted information and raises no objection to the grant of planning permission, subject to conditions securing detailed design, construction-phase drainage management, and long-term maintenance of SuDS. This confirms that the development would be safe for its lifetime and would not increase flood risk on- or off-site

14.10.17 Subject to the recommended conditions, the proposal is considered to comply with Core Policy 36 (Flood Risk) and Core Policy 37 (Sustainable Drainage Systems) of the adopted Uttlesford Local Plan 2021–2041, as well as Core Policy 1 in respect of climate change adaptation and resilience.

14.10.18 The application is supported by a site-specific Flood Risk Assessment which demonstrates that the site is located wholly within Flood Zone 1 and is therefore at low risk of flooding from fluvial and tidal sources. The assessment identifies that the site is also at generally low risk from other sources of flooding, including surface water, groundwater, sewer and reservoir flooding, with only limited localised areas of surface water risk identified.

14.11 **K) Planning Obligations**

14.11.1 A Section 106 Agreement will be secured pursuant to Section 106 of the Town and Country Planning Act 1990. The proposed planning obligations are necessary to make the development acceptable in planning terms and meet the tests set out in Regulation 122 of the Community Infrastructure Levy Regulations 2010 (as amended). The obligations give effect to the relevant policies of the Uttlesford Local Plan 2021–2041, as set out below.

14.11.2 Affordable Housing

- Provision of 50% affordable housing (up to 150 dwellings), comprising 70% Affordable Rent and 30% Intermediate housing, delivered on a phased basis.
- Provision of ADS OF TERMS
- Discounted Market Sale housing, secured in perpetuity.
- Nomination rights for Uttlesford District Council. A right of first refusal for the Council on up to 10 Affordable Rented dwellings for potential Council ownership, with a fallback to Registered Provider delivery where the option is not exercised.

14.11.3 Public Open Space and Recreation

- Provision of on-site public open space, including informal open space and play provision.
- Long-term management and maintenance secured through a management company.

14.11.4 Health and Emergency Services

- Healthcare Contribution, a financial contribution of approximately £510,534 (index linked) towards the reconfiguration, extension and/or expansion of local primary healthcare facilities, including Peacock Surgery, together with an additional financial contributions in respect of the proposed care home, with final figures to be confirmed by the Integrated Care Board.
- An Ambulance Services Contribution of £386 per dwelling, towards the relocation and expansion of the Harlow Ambulance Hub.
- A £5,000 defibrillator contribution to support the provision of a publicly accessible defibrillator serving the development.

14.11.5 Hatfield Forest SSSI / NNR Mitigation

- A Strategic Access Management and Monitoring (SAMM) contribution of £1,333.60 per dwelling towards mitigation measures at Hatfield Forest.

These measures address Natural England's advice and support the Council's statutory duties in respect of designated sites.

14.11.6 Biodiversity Net Gain (In accordance with Policies CP36 and CP44)

- Delivery of a minimum of 20% Biodiversity Net Gain, exceeding the statutory minimum.

- Submission of a Biodiversity Gain Plan, long-term management arrangements and a monitoring fee secured through the Section 106 Agreement.

14.11.7 Highways and Transport

- Sustainable Transport Contribution -£860,000 (index linked) towards improvements to bus services.
- Bus Infrastructure – bus shelter, bus stop and maintenance contribution.
- A120 / B1383 Stansted Road Roundabout Improvement Contribution- £300,000 (index linked) towards capacity improvement works at the A120 / B1383 Stansted Road roundabout, to be pooled with other developer contributions.
- Provision of a Shared Mobility Scheme
- Residential Travel Plan Monitoring Fee
£1,817 payable to Essex County Council to support the implementation and monitoring of a Residential Travel Plan from first occupation.

14.11.8 Education Provisions

14.11.9 In the absence of a formal consultation response from Essex County Council, an indicative education contribution has been calculated using the County Council's standard pupil yield multipliers and cost per place assumptions, as evidenced in recent consultation responses for comparable developments within Uttlesford District.

14.11.10 Based on a development of up to 300 dwellings, the proposal is estimated to generate approximately:

- 27 early years places
- 90 primary school places
- 60 secondary school places

14.11.11 Applying Essex County Council's current cost per place results in an indicative total education contribution of approximately £3.98 million, comprising:

Early Years: £626,184
Primary: £1,748,250
Secondary: £1,603,020

14.11.12 At this scale of development, Essex County Council may also seek the provision of land for a new primary school or the expansion of existing provision. Should land be secured within the application, the

financial contribution may be subject to adjustment, offset, or a combination of land and financial provision, depending on the agreed delivery strategy.

14.11.13 Safeguarded land for education provision has been included as part of the proposed development. However, at this stage, Essex County Council (Education Authority) has not confirmed whether this provision meets their requirements or whether it would be accepted as part of the overall education mitigation strategy.

14.11.14 In the absence of a confirmed position from Essex County Council, the above figures should be treated as indicative, based on the County Council's published methodology and recent consultation responses.

It is recommended that authority be delegated to the Strategic Director of Planning to agree the final education contribution, including any necessary revisions to the scale, form or timing of the obligation (including land requirements and indexation), in consultation with Essex County Council, during the drafting of the Section 106 Agreement.

14.11.15 Supported and Specialist Housing

14.11.15.1 Provision of no less than 5% of the total dwellings as extra care, sheltered or retirement accommodation (Use Class C3), in accordance with Core Policy 54, with delivery, phasing and any viability review mechanism to be secured through the Section 106 Agreement.

14.11.16 Residential Travel Plan and Sustainable Travel Measures

- Submission, approval and implementation of a Residential Travel Plan to promote sustainable travel, including monitoring for a minimum of one year following final occupation.
- Payment of a Travel Plan monitoring fee of £1,817 (index linked) to Essex County Council.
- Provision of a Residential Travel Information Pack per dwelling, including sustainable travel information and public transport vouchers, to be approved by the LPA in consultation with ECC and provided prior to occupation.

14.11.17 Village Hall

14.11.17.1 Provision and transfer of a serviced village hall site (c.0.34ha) to Stansted Mountfitchet Parish Council at £1, including access and servicing, with appropriate use restrictions and a fallback mechanism if not taken forward.

14.11.18 Workplace Travel Plan

Prior to the first occupation of the commercial elements of the development, the Developer shall submit a Workplace Travel Plan to the Local Planning Authority for approval, in consultation with Essex County Council.

The approved Workplace Travel Plan shall thereafter be implemented in full and remain in operation for a minimum period of 5 years from first occupation.

- 14.11.18.1** The Developer shall pay a Travel Plan monitoring fee of £7,269 (index linked) to Essex County Council prior to first occupation of the commercial development, to cover the cost of monitoring the Travel Plan over the agreed period

14.11.19 Public Art

- 14.11.19.1** Provision of public art within the development or financial contribution (to be agreed).

14.12 **L) Environmental Impact Assessment**

- 14.12.1** The application is accompanied by an Environmental Statement (ES), including a Non-Technical Summary (October 2025), which has been prepared in accordance with the Town and Country Planning (Environmental Impact Assessment) Regulations 2017. The Environmental Statement considers the likely significant environmental effects of the proposed development both individually and cumulatively, using a worst-case assessment based on the outline application parameters.

- 14.12.2** The Environmental Statement assesses the likely effects of the development across the following topic areas, as agreed through the EIA process: landscape and visual impact, transport, socio-economics, ecology, noise, air quality, climate change, water and public health, and includes consideration of construction and operational phases, embedded mitigation measures and cumulative impacts with other committed and emerging development.

- 14.12.3** In assessing this application, the Local Planning Authority has had full regard to the contents of the Environmental Statement, including the detailed assessments, identified mitigation measures and the conclusions reached for each topic area. The findings of the ES have been taken into account and relied upon in the assessment of the development against the policies of the adopted Uttlesford Local Plan and national planning policy. Where relevant, matters identified within the Environmental Statement are addressed through planning conditions and planning obligations, including landscape mitigation, surface water drainage, biodiversity enhancement, mitigation to protect Hatfield Forest SSSI, transport measures, and health infrastructure contributions.

14.12.4 The assessment concludes that, subject to the implementation of the embedded mitigation measures and controls secured through planning conditions and the Section 106 Agreement, the proposed development would not give rise to any unacceptable environmental effects that would justify refusal of planning permission under the EIA Regulations.

14.13 M) Planning Balance

14.13.1 In determining this application, the Council is required to consider the proposal against the Development Plan as a whole and all other material considerations, in accordance with Section 38(6) of the Planning and Compulsory Purchase Act 2004. Where conflict with elements of the Development Plan is identified, it is necessary to carry out a planning balance to determine whether material considerations indicate that planning permission should nevertheless be granted.

14.13.2 While paragraph 11(d) of the NPPF is engaged due to the absence of a five-year housing land supply, the application falls to be determined principally in accordance with the specific policies of the Framework relating to Green Belt and Grey Belt development. These policies provide a tailored decision-making framework, within which the acceptability of the development is assessed. In this case, no clear reason for refusal has been identified under the policies of the Framework that would provide a strong basis for withholding permission, beyond the harms identified and assessed within this report.

14.13.3 Paragraph 158 of the Framework is explicit that development on Grey Belt land which complies with the Golden Rules should be given significant weight in favour of the grant of planning permission. The proposal meets these requirements and is therefore supported by a clear and specific national policy presumption in favour of approval. The planning balance has accordingly been undertaken on that basis.

14.13.4 In applying this planning balance, weight has been attributed to each identified harm and benefit having regard to the scale and nature of the effect, its spatial extent, and the degree of policy protection or support provided by the Development Plan and the National Planning Policy Framework. Where national policy provides clear direction as to the weight to be given, such as in respect of Green Belt harm, heritage impact and development complying with the Grey Belt “Golden Rules”, this has been reflected accordingly. The assessment of weight is a matter of planning judgment, informed by the evidence set out in this report.

14.13.5 Identified Harms

14.13.6 Green Belt Harm

14.13.6.1 Weight: Substantial

14.13.6.2 As set out in Section 14.1, the site is considered to comprise Green Belt land and the proposal is therefore assessed as not inappropriate development in Green Belt terms, having regard to paragraph 155 of the NPPF. As such, no “inappropriate development” harm arises. Notwithstanding this, the development would result in harm to the openness of the Green Belt, which is a fundamental characteristic of Green Belt policy. In accordance with national policy, this harm attracts substantial weight in the planning balance.

14.13.7 Landscape and Visual Effects

14.13.7.1 Weight: Moderate

14.13.7.2 The Environmental Statement and Landscape and Visual Impact Assessment identify that the proposal would result in a fundamental and permanent change to the character of the site itself, with significant adverse effects at the immediate site level and for certain nearby receptors, including users of public rights of way.

14.13.7.3 However, it is also recognised that:

- the site is not subject to any national or local landscape designation.
- landscape effects beyond the site are localised and limited in extent.
- settlement separation would be maintained and no coalescence identified; and
- substantial mitigation is embedded through layout, structural planting and long-term management.

14.13.7.4 On this basis, the landscape and visual harm is a material consideration weighing against the proposal but is localised in extent and moderated by mitigation and is therefore afforded moderate weight. In weighing this matter, the harm is significant at the site level but is localised in extent, affects a non-designated landscape, and would be reduced over time through mitigation and planting. It is therefore afforded moderate weight.

14.13.8 Heritage Impact

14.13.8.1 Weight: Limited (Less than Substantial Harm)

14.13.8.2 The proposal would result in less than substantial harm to the setting of nearby designated heritage assets, including the Grade II* Church of St Mary the Virgin and associated Grade II listed buildings. The

harm arises primarily from change within the wider rural setting rather than from physical intervention or loss of historic fabric.

14.13.8.3 In accordance with Sections 66 and 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990, great weight has been given to the conservation of heritage assets. The harm is acknowledged as a material consideration and attracts weight against the proposal.

14.13.8.4 However, the Heritage Impact Assessment and consultee advice confirm that:

- the architectural and historic significance of the assets would be preserved.
- their immediate settings would remain legible.
- mitigation through landscape-led design is effective; and
- further refinement can be achieved at reserved matters stage.

14.13.8.5 In accordance with the NPPF, less than substantial harm should be weighed against the public benefits of the proposal, and in this case the harm lies at the lower end of that spectrum, such that it attracts limited weight. As such, the harm is appropriately categorised as less than substantial and attracts limited but meaningful weight in the planning balance.

14.13.9 Loss of Agricultural Land

14.13.9.1 Weight: Limited

14.13.9.2 The development would result in the loss of agricultural land. However, the land does not constitute an extensive or high-quality strategic resource, and the scale of loss is not determinative when weighed against the housing, infrastructure and environmental benefits of the scheme. The loss of agricultural land is acknowledged; however, the scale and quality of the land affected are not such that this harm is determinative, and it is therefore afforded limited weight in the planning balance.

14.13.10 **Identified Benefits**

4.13.11 Grey Belt Development in Compliance with the Golden Rules

14.13.11.1 Weight: Significant

14.13.11.2 Having regard to the site's contribution to Green Belt purposes, its relationship to the existing settlement edge, and the absence of overriding policy constraints, the land is capable of being regarded as Grey Belt for decision-taking purposes.

14.13.11.3 The proposal complies with the Golden Rules, by delivering:

- 50% affordable housing;
- new and improved publicly accessible green space; and
- necessary infrastructure improvements, secured through conditions and legal obligations.

14.13.11.4 In accordance with paragraph 158 of the NPPF, compliance with the Golden Rules attracts significant weight in favour of the proposal, and this is applied in the planning balance.

14.13.12 Contribution to Housing Land Supply

14.13.12.1 Weight: Moderate to Substantial

14.13.12.2 The proposed development would make a meaningful contribution to the delivery of new housing within the district at a time when the Council is unable to demonstrate a full five-year housing land supply. The delivery of up to 300 dwellings, including a significant proportion of affordable homes, would assist in addressing this identified shortfall and provide additional flexibility within the housing trajectory.

14.13.12.3 While the shortfall is acknowledged to be marginal, national policy confirms that the provision of additional housing remains a significant material consideration where a five-year supply cannot be demonstrated. The contribution of this scheme would therefore help to bolster housing delivery in the short to medium term, reduce reliance on less sustainable alternatives, and support the effective delivery of the spatial strategy.

14.13.12.4 In this context, the delivery of market and affordable housing attracts moderate to substantial weight in favour of the proposal and reinforces the overall public benefits of the scheme.

14.13.13 Affordable Housing Provision

14.13.13.1 Weight: Substantial

14.13.13.2 The scheme delivers 50% affordable housing, substantially exceeding typical policy requirements and directly addressing an acute and well-documented local need. The mix of tenures and the potential for Council acquisition of homes enhance the importance of this benefit. In the context of district-wide affordability pressures, this benefit attracts substantial weight in favour of the proposal. This reflects both the scale of delivery and the acute identified need within the district

14.13.14 Provision of Local Services and Community Infrastructure

14.13.14.1 Weight: Moderate

14.13.14.2 The proposal includes provision for a range of community-supporting uses, including Class E floorspace (local retail and services), an early years nursery, a care home, and the delivery of a serviced village hall site. These elements would:

- support day-to-day needs locally;
- reduce the need to travel;
- provide social infrastructure for both new and existing residents; and
- contribute to the creation of a sustainable and mixed community.

14.13.14.3 While these benefits are important in supporting the overall sustainability and placemaking objectives of the scheme, they are proportionate to the scale of development and primarily serve the needs of the new community rather than delivering strategic infrastructure of district-wide significance.

14.13.15 Green Infrastructure and Public Open Space

14.13.15.1 Weight: Moderate to Substantial

14.13.15.2 The proposal provides extensive new and enhanced green infrastructure, including accessible natural greenspace, recreational areas, and new walking and cycling connections. These benefits extend beyond the site and improve opportunities for recreation, health and wellbeing for both new and existing residents. This benefit attracts moderate to substantial weight. The scale of provision, its accessibility, and its wider benefits to both new and existing residents justify the moderate to substantial weight attributed

14.13.16 Biodiversity Net Gain and Environmental Enhancement

14.13.16.1 Weight: Substantial

14.13.16.2 The scheme secures Biodiversity Net Gain, well exceeding statutory requirements, alongside long-term management and monitoring. Wider environmental enhancements and mitigation for Hatfield Forest further strengthen this benefit. These outcomes constitute a significant environmental benefit and attract substantial weight. The extent to which the proposal exceeds statutory requirements and secures long-term environmental enhancement justifies the substantial weight applied.

14.13.17 Infrastructure Investment

14.13.17.1 Weight: Moderate

14.13.17.2 Through the Section 106 Agreement, the development secures a comprehensive package of infrastructure contributions and mitigation measures, including:

- healthcare provision;
- emergency services contributions;
- education provision (subject to confirmation);
- sustainable transport improvements;
- drainage and environmental mitigation.

14.13.17.3 These measures ensure that the development can be accommodated without unacceptable pressure on existing infrastructure. While some elements (notably education and health contributions) are subject to final agreement, they are capable of being secured through the S106 process.

14.13.17.4 Taken together, this attracts moderate positive weight.

14.13.18 Sustainable Transport and Accessibility Improvements

14.13.18.1 Weight: Moderate

14.13.18.2 The proposal includes a coordinated package of sustainable transport measures, including:

- financial contributions towards enhanced bus services and infrastructure;
- improved walking and cycling connections; and
- a comprehensive Travel Plan.

14.13.18.3 These measures support modal shift away from private car use, improve accessibility, and align with national and local policy objectives for sustainable transport. This attracts moderate weight.

14.13.19 Climate Change Mitigation and Energy Efficiency

14.13.19.1 Weight: Moderate

14.13.19.2 The development incorporates a comprehensive low-carbon strategy, including:

- energy-efficient building design;
- fossil fuel-free heating;
- on-site renewable energy generation; and
- water efficiency and climate-resilient design measures.

14.13.19.3 The delivery of a development capable of achieving net-zero operational carbon represents a significant environmental benefit and attracts moderate weight.

14.13.20 Economic and Social Benefits

14.13.20.1 Weight: Limited

14.13.20.2 The development would generate employment during construction, support the local economy, and deliver wider social benefits arising from new homes, improved connectivity and enhanced environments. These benefits attract moderate weight.

14.13.21 Design of the Development

14.13.21.1 Weight; Significant

14.13.21.2 The Council's Principal Urban Design Officer describes the scheme as exemplary, place-specific and landscape-led, and officers agree. The proposal demonstrates a genuinely landscape-led approach, resulting in a distinctive and contextually responsive form of development that accords strongly with Core Policy 52 and the NPPF. This represents a clear benefit and weighs positively in the planning balance.

14.13.22 Other Placemaking Benefits

14.13.22.1 Weight: Limited

14.13.22.2 Additional benefits include the provision of public art and high-quality place-making elements secured through the design code and planning obligations. While more limited in scale, these contribute to the overall quality and identity of the development and attract limited weight.

14.13.23 Overall Planning Balance and Conclusion

14.13.24 The proposal would result in substantial Green Belt harm, together with moderate landscape and visual harm, and limited harm to heritage assets and agricultural land. These harms are important material considerations and weigh against the development.

14.13.25 However, they must be weighed against a clear and policy-compliant package of benefits. These include development on Grey Belt land in accordance with the Golden Rules of the NPPF, a meaningful contribution to housing land supply, the delivery of 50% affordable housing, and the provision of new community infrastructure, including local services, a care home and a serviced village hall site.

14.13.26 The scheme would also deliver significant public open space, enhanced green infrastructure and biodiversity net gain well above the statutory minimum, alongside a comprehensive package of infrastructure and sustainable transport improvements. Further

benefits arise from low-carbon design, supporting progress towards net-zero operational carbon, and wider economic and social gains associated with job creation and the delivery of a sustainable, mixed community. Significant weight is also afforded to the quality of design, with the scheme representing a landscape-led, place-specific development of exemplary quality which accords strongly with Core Policy 52 and the NPPF.

14.13.27 Having regard to the weight to be afforded to Golden Rules-compliant Grey Belt development, and when considered against the Development Plan and all other material considerations, it is concluded that the benefits of the proposal clearly outweigh the identified harms. The development is therefore considered acceptable in planning balance terms, subject to the imposition of planning conditions and the completion of a Section 106 Agreement.

14.13.28 Alternative Balance (Non-Grey Belt / VSC Scenarios – aligned with Addendum)

14.13.29 The above planning balance has been undertaken on the basis that the site is capable of being regarded as Grey Belt land and that the presumption in favour of sustainable development is engaged, having regard to the Council's current housing land supply position.

14.13.30 However, the Council's housing delivery position remains subject to change, and it is also recognised that an alternative conclusion could be reached as to whether the site constitutes Grey Belt land. In such circumstances, the proposal would fall to be assessed as inappropriate development within the Green Belt, requiring the demonstration of Very Special Circumstances (VSC).

14.13.31 A full assessment of these alternative scenarios, including the weight to be afforded to the benefits of the proposal and whether they would be sufficient to outweigh Green Belt harm, is set out within the accompanying addendum to this report.

15 ADDITIONAL DUTIES

15.1 Public Sector Equalities Duties

15.1.1 The Equality Act 2010 provides protection from discrimination in respect of certain protected characteristics, namely: age, disability, gender reassignment, pregnancy and maternity, race, religion or beliefs and sex and sexual orientation. It places the Council under a legal duty to have due regard to the advancement of equality in the exercise of its powers including planning powers.

15.1.2 The Committee must be mindful of this duty inter alia when determining all planning applications. In particular, the Committee must pay due regard to the need to: (1) eliminate discrimination,

harassment, victimisation and any other conduct that is prohibited by or under the Act; (2) advance equality of opportunity between persons who share a relevant protected characteristic and persons who do not share it; and (3) foster good relations between persons who share a relevant protected characteristic and persons who do not share it.

- 15.1.3** Due consideration has been made to The Equality Act 2010 during the assessment of the planning application; no conflicts are raised.

15.2 Human Rights

- 15.2.1** There may be implications under Article 1 (protection of property) and Article 8 (right to respect for private and family life) of the First Protocol regarding the right of respect for a person's private and family life and home, and to the peaceful enjoyment of possessions; however, these issues have been taken into account in the determination of this application

16 CONCLUSION AND RECOMMENDATION

- 16.1** The proposed development has been assessed against the Development Plan and all other material considerations, including the National Planning Policy Framework. While the proposal would result in harm to the Green Belt and landscape character, together with a degree of harm to heritage settings, these impacts are acknowledged and weigh against the scheme. However, this harm is localised and has been reduced through a landscape-led design approach and embedded mitigation. The site is reasonably regarded as Grey Belt land and the proposal complies with the Golden Rules, to which substantial weight is afforded.

- 16.2** Set against this, the scheme delivers a substantial package of public benefits that are Regulation 122 compliant, including a meaningful contribution to housing supply, the delivery of 50% affordable housing, and wider economic, social and environmental benefits in a sustainable and accessible location. Having regard to the Development Plan as a whole, the National Planning Policy Framework (2024), and all other material considerations It is concluded that the benefits of the proposal clearly outweigh the identified harm. Planning permission is therefore recommended, subject to conditions and the completion of a Section 106 Agreement.

- 16.3 RECOMMENDATION – CONDITIONAL APPROVAL SUBJECT TO CONDITIONS AND S106**

17. S106/ CONDITIONS

17.1 S106 HEADS OF TERMS

17.1.1 Affordable Housing

- Provision of 50% affordable housing (tenure mix, distribution and phasing to be agreed)
- Provision of no less than 5% bungalows
- Provision of a minimum of 5% Specialist / Supported Housing (subject to strategy and viability review).
- Inclusion of the care home within relevant Travel Plan, infrastructure and service contributions.
- Cascade mechanism allowing UDC first refusal on up to 10 affordable rented dwellings for delivery as council housing (subject to reasonable and commercially prudent endeavours)

17.1.2 Education and Health

- Education contribution: Approximately £3.98 million (index linked) comprising Early Years (£626,184), Primary (£1,748,250), Secondary (£1,603,020), subject to agreement with Essex County Council including safeguarded land provision
- Healthcare contribution: £510,534 (index linked) plus additional care home contribution to be confirmed
- Ambulance service contribution: £386 per dwelling
- Defibrillator contribution: £5,000 for publicly accessible provision

17.1.3 Transport and Connectivity

- Sustainable transport contribution: £860,000 (index linked) towards bus services
- Bus infrastructure improvements including shelters, RTI, kerbs and commuted sums
- A120/B1383 roundabout contribution: £300,000 (index linked)
- Residential Travel Plan monitoring fee: £1,817
- Residential and Workplace Travel Plans
- Provision of a Shared Mobility Scheme

17.1.4 Green Infrastructure and Recreation

- Provision of on-site public open space, including recreation, play provision
- Long-term management and maintenance of public open space

17.1.5 Environmental Mitigation and Enhancement

- Hatfield Forest SSSI / NNR mitigation (SAMM contribution)
- Delivery of a minimum 20% Biodiversity Net Gain, including long-term management and monitoring arrangements
- Retain Land

17.1.6 Community Infrastructure

- Provision of a serviced village hall site (including access and servicing arrangements)
- Public art contribution and/or on-site delivery

17.1.7 Monitoring and Administration

- Monitoring contributions and legal costs associated with the agreement

17.3. CONDITIONS

- 1 Approval of the details of layout, scale, landscaping, and appearance (hereafter called "the Reserved Matters") must be obtained from the Local Planning Authority in writing before development commences and the development must be carried out as approved.

REASON: In accordance with Article 5 of The Town and Country Planning (Development Management Procedure) (England) Order 2015 (as amended) and Section 92 of the Town and Country Planning Act 1990 as amended by Section 51 of the Planning and Compulsory Purchase Act 2004.

- 2 Application for approval of the Reserved Matters must be made to the Local Planning Authority not later than the expiration of three years from the date of this permission.

REASON: In accordance with Section 92 of the Town and Country Planning Act 1990 as amended by Section 51 of the Planning and Compulsory Purchase Act 2004.

- 3 The development hereby permitted must be begun no later than the expiration of two years from the date of approval of the last of the Reserved Matters to be approved.

REASON: In accordance with Section 92 of the Town and Country Planning Act 1990 as amended by Section 51 of the Planning and Compulsory Purchase Act 2004.

- 4 The development hereby permitted shall be carried out in accordance with the following approved plans/ drawings:

08551-CI-E-SK11 P05 – Revised Site F Access Arrangement
08551-CI-E-SK17 P02 – Revised Site F Vehicle Tracking
08551-PJA-SVS-CI-DR-005 P02 – Signalised Junction
1092-STs-DLA-00-ABFG-D-L-10001 REV P01 – Site Wide Landscape
1092-STs-DLA-00-FG-D-L-10001 REV P01 – Landscape Masterplan
2153 STS-FCB-02-XX-D-A-10002 REV D – Location Plan
2153 STS-FCB-02-XX-D-A-10041 REV I – Parameter Plan – Land Use
2153 STS-FCB-02-XX-D-A-10042 REV H – Parameter Plan – Building Heights
2153 STS-FCB-02-XX-D-A-10043 J – Revised Parameter Plan

REASON: For the avoidance of doubt as to the nature of the development hereby permitted, to ensure development is carried out in accordance with the approved application details, to ensure that the development is carried out with the minimum harm to the local environment, in accordance with the Policies of the Uttlesford Local Plan 2021-2041 (adopted 2026) as shown in the Schedule of Policies.

- 5 No development shall commence until a Phasing Plan for the whole development has been submitted to and approved in writing by the Local Planning Authority.

The Phasing Plan shall be informed by the approved access arrangements and shall set out a comprehensive and coordinated strategy for the delivery of the development in phases, and shall include:

- a) the timing and provision of on-site infrastructure, including internal roads, pedestrian and cycle routes, drainage infrastructure, public open space, landscaping and any ecological mitigation or enhancement measures;
- b) the timing of any off-site infrastructure required to mitigate the impacts of the development, including transport and highways-related works where relevant;
- c) the relationship between the occupation of dwellings and the delivery of supporting infrastructure, demonstrating that infrastructure will be provided in advance of, or alongside, each phase of residential development; and

The development shall thereafter be carried out strictly in accordance with the approved Phasing Plan, unless otherwise agreed in writing by the Local Planning Authority.

REASON

To ensure the coordinated and timely delivery of development and supporting infrastructure, to prevent piecemeal implementation, and to ensure that adequate infrastructure is provided at appropriate stages of the development in the interests of highway safety, sustainable travel, residential amenity and placemaking.

The condition is imposed in accordance with Core Policy 5 (Providing Supporting Infrastructure and Services), Core Policy 27 (Assessing the Impact of Development on Transport Infrastructure) and Core Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041, and paragraphs 7, 8, 72–74 and 110 of the National Planning Policy Framework

- 6 Prior to the approval of the first Reserved Matters application, Public Rights of Way scheme demonstrating how the development will enhance and protect the Public Rights of Way network shall be submitted to and approved by the local planning authority.

REASON

To ensure the continued safe use, protection and enhancement of Public Rights of Way in accordance with Core Policy 30 (Public Rights of Way) and Core Policies 26–28 of the Uttlesford Local Plan, and paragraphs 115–117 of the National Planning Policy Framework (2024).

- 7 Prior to the approval of the first reserved matters application, the Developer shall submit to the Local Planning Authority for approval, in consultation with the highway authority, a scheme of highway works, as shown indicatively on drawing nos. 08551-CI-E-SK11 Rev P05 and 08551-PJA-SVS-CI-DR-005 Rev P03 to include, but not be limited to:
- a. Signalisation of the junction of Forest Hall Road with B1383 Stansted Road
 - b. Signalisation to include one controlled pedestrian crossing point on Forest Hall Road and one controlled pedestrian crossing point on B1383 Stansted Road
 - c. All controlled pedestrian crossing points to be served by a footway of minimum width 2 metres
 - d. Continuous provision of a 2-metre footway along Forest Hall Road eastwards from the main site access to tie into existing provision
 - e. Dropped kerbs and tactile paving at the entrance to Forest Hall School car park
 - f. North-south crossing point of Forest Hall Road in the vicinity of the junction with Parsonage Road
 - g. Active travel route between the site and Peachey Walk/bridleway 53 (Stansted Mountfitchet 45)
 - h. Lining, signing and traffic regulation order for the prohibition of parking on Forest Hall Road in the vicinity of the site access and the Forest Hall School access

Prior to occupation of the development, the approved highway works to be implemented entirely at the Developer's expense.

REASON

In the interests of highway safety, capacity, and promoting sustainable travel modes, in accordance with Core Policies 26 and 27 of the Uttlesford Local Plan and the National Planning Policy Framework (2024).

- 8 Prior to the approval of the Reserved Matters application for each phase, a Crime Prevention and Community Safety Statement shall be submitted to and approved in writing by the Local Planning Authority. The Statement shall:

- a) Demonstrate how the layout, public realm, movement framework, parking, and landscaping have been designed to reduce opportunities for crime and anti-social behaviour;

b) Explain how the development accords with Secured by Design principles and relevant guidance from Essex Police Designing Out Crime Office; and

c) Identify reasonable and proportionate crime-prevention measures to be incorporated within the development.

The development shall thereafter be carried out in accordance with the approved Statement.

REASON:

To reduce opportunities for crime and disorder, create safe and secure environments, and promote community cohesion, in accordance with Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041 and paragraphs 92 and 135 of the National Planning Policy Framework, which require development to promote healthy, safe and inclusive places.

- 9 Prior to the approval of the Reserved Matters application for each phase details shall be submitted to and approved in writing by the Local Planning Authority demonstrating that access for fire appliances has been incorporated into the design of the development.
The details shall show that:

- a) Access routes have a minimum width of 3.7 metres;
- b) Dead-end access routes in excess of 20 metres are provided with suitable turning facilities;
- c) Fire appliances can be accommodated within adequate turning and sweep circles; and
- d) All access routes and hardstandings are capable of supporting the weight and operational requirements of fire appliances.

The development shall be carried out in accordance with the approved details.

REASON

To ensure that safe and adequate access is provided for emergency service vehicles, in the interests of life safety and effective emergency response, in accordance with Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041 and paragraphs 92, 130 and 135 of the National Planning Policy Framework, which require development to create safe, inclusive and well-designed place

- 10 Prior to the commencement of development, a Construction and Environmental Management Plan (CEMP) shall be submitted to and approved in writing by the Local Planning Authority.

The approved CEMP shall include, as a minimum, details of the following matters:

- a) measures for the mitigation and management of dust;

- b) the location and operation of plant, equipment and wheel-washing facilities;
- c) measures to minimise demolition and construction noise;
- d) hours of demolition and construction operations;
- e) details of a complaints procedure, including the identification of a designated on-site person responsible for responding to complaints;
- f) any other site-specific environmental protection measures as reasonably required by the Local Planning Authority;
- g) arrangements for:
 - i. parking of vehicles for site operatives and visitors;
 - ii. loading and unloading of plant and materials;
 - iii. storage of plant and materials used in construction;
 - iv. wheel and underbody cleaning facilities; and
 - v. construction vehicle routing and safe site access.

The development shall be carried out in full accordance with the approved CEMP for the duration of construction.

REASON:

To minimise the impact of construction works on the amenity of nearby residents, to protect the environment, and to ensure the safe and efficient operation of the highway network during construction, in accordance with Core Policy 42 (Pollution and Contamination), Core Policy 26 (Providing for Sustainable Transport and Connectivity) and Core Policy 44 (Noise, Light and Vibration) of the Uttlesford Local Plan 2021–2041, and paragraphs 108 and 180 of the National Planning Policy Framework.

- 11 Prior to the approval of the reserved matters application for each phase a Noise Impact Assessment and Mitigation Strategy shall be submitted to and approved in writing by the Local Planning Authority.

The assessment shall:

- a) Be informed by baseline noise monitoring, including daytime and night-time surveys;
- b) Assess the impact of all relevant noise sources, including (but not limited to):
 - i. Road traffic (including commercial and HGV movements);
 - ii. Aircraft noise, including forecast future growth at Stansted Airport;
 - iii. Fixed plant and commercial noise sources;
 - iv. External sports and recreational uses;
- c) Be undertaken in accordance with BS8233:2014 and, where applicable, BS4142:2014+A1:2019;
- d) Demonstrate how noise impacts are mitigated through the design and layout of the development, including:
 - i. Site layout and land use zoning;
 - ii. Building orientation and massing;
 - iii. Acoustic barriers or bunding;
 - iv. Building envelope insulation; and

- v. Internal layout of noise-sensitive rooms;
 - e) Demonstrate that internal noise levels achieve BS8233:2014 standards;
 - f) Demonstrate that external amenity areas achieve the lowest practicable levels, with a target of 50 dB LAeq,16hr and not exceeding 55 dB LAeq,16hr; and
 - g) Identify any further mitigation measures required.
- The development shall thereafter be carried out in accordance with the approved Noise Impact Assessment and Mitigation Strategy.

REASON

To ensure that the development provides a high standard of amenity for future occupants, having regard to Core Policies 44 (Noise) and 52 (Design) of the Uttlesford Local Plan and the National Planning Policy Framework.

- 12 No development shall commence until a Construction Management Plan (Aviation Safeguarding) has been submitted to and approved in writing by the Local Planning Authority, in consultation with the Stansted Airport Aerodrome Safeguarding Authority.

The Plan shall include measures relating to:

- Control of dust, smoke and debris;
- Management of temporary construction lighting;
- Notification of tall plant, cranes and equipment;
- Control of drones and radio-frequency emitting devices;
- Prevention of standing water and food waste that may attract birds; and
- Foreign Object Debris (FOD) prevention.

The approved Plan shall be implemented for the duration of the construction period.

REASON

To ensure construction activities do not pose a hazard to aviation operations, in accordance with Policy 32a of the Uttlesford Local Plan 2021–2041 and paragraph 183 of the National Planning Policy Framework

- 13 The development may not be begun unless a biodiversity gain plan has been submitted to the planning authority and the planning authority has approved the plan.

REASON: In order to accord with Schedule 7A of the Town and Country Planning Act 1990 (as inserted by Schedule 14 of the Environment Act 2021) and amended by The Biodiversity Gain (Town and Country Planning) Modifications and Amendments (England) Regulations 2024.

A Habitat Management and Monitoring Plan (HMMP) for significant on-site enhancements, prepared in accordance with the approved Biodiversity Gain Plan, shall be submitted to, and approved in writing by the local authority, prior to commencement of development, including:

- a) a non-technical summary;
- b) the roles and responsibilities of the people or organisation(s) delivering the HMMP;
- c) the planned habitat creation and enhancement works to create or improve habitat to achieve the on-site significant enhancements in accordance with the approved Biodiversity Gain Plan;
- d) the management measures to maintain habitat in accordance with the approved Biodiversity Gain Plan for a period of 30 years from the completion of development;
- e) the monitoring methodology in respect of the created or enhanced habitat to be submitted to the local planning authority; and
- f) details of the content of monitoring reports to be submitted to the LPA including details of adaptive management which will be undertaken to ensure the aims and objectives of the Biodiversity Gain Plan are achieved.

Notice in writing shall be given to the Council when the:

- initial enhancements, as set in the HMMP, have been implemented; and
- habitat creation and enhancement works, as set out in the HMMP, have been completed after 30 years.

The created and/or enhanced habitat specified in the approved HMMP shall be managed and maintained in accordance with the approved HMMP.

Unless otherwise agreed in writing, monitoring reports shall be submitted in years 1, 3, 5, 10, 15, 20, 25, and 30 to the Council, in accordance with the methodology specified in the approved HMMP.

The Council shall only issue approval of the habitat creation and enhancement works until:

- the habitat creation and enhancement works set out in the approved HMMP have been completed; and
- a completion report, evidencing the completed habitat enhancements, has been submitted to, and approved in writing by the Local Planning Authority.

REASON: To secure the delivery, long-term management and monitoring of biodiversity net gain in accordance with Schedule 7A of the Town and Country Planning Act 1990, and to comply with Core Policies 39 (Green and Blue Infrastructure) and 40 (Biodiversity and Nature Recovery) of the Uttlesford Local Plan (2021–2041), and the National Planning Policy Framework (2024).

JUSTIFICATION

Biodiversity Net Gain is a statutory requirement which must be secured prior to the commencement of development. Core Policies 39 and 40 require the enhancement of biodiversity networks and the delivery of measurable biodiversity gains, supported by long-term management and monitoring.

The HMMP ensures that habitat creation, enhancement, management and monitoring are embedded from the outset and maintained over a minimum 30-year period, thereby securing the ecological outcomes envisaged by both national policy and the adopted Uttlesford Local Plan.

- 15 No development or preliminary groundworks of any kind shall take place until a Written Scheme of Investigation (WSI) for a phased programme of archaeological investigation has been submitted to and approved in writing by the Local Planning Authority.

The WSI shall be prepared by a suitably qualified archaeological organisation and shall include, as appropriate, a programme of archaeological evaluation (trial trenching), mitigation, recording, reporting, and archiving.

REASON:

To ensure that any archaeological remains of interest are appropriately identified and assessed prior to development, in accordance with Policy 64 (Archaeological Assets) of the Uttlesford Local Plan 2021–2041 and paragraph 218 of the National Planning Policy Framework, which require applicants to assess and record the significance of heritage assets affected by development.

- 16 No development or preliminary groundworks of any kind shall take place until the archaeological evaluation identified within the approved Written Scheme of Investigation (WSI) has been carried out and completed, and the findings have been confirmed in writing by the archaeological advisors to the Local Planning Authority.

REASON:

To allow the Local Planning Authority to understand the nature, extent and significance of any archaeological remains present, and to inform appropriate mitigation measures, in accordance with Policy 64 of the Uttlesford Local Plan and paragraphs 218 and 222 of the National Planning Policy Framework.

- 17 Where archaeological remains are identified, no development or preliminary groundworks of any kind shall take place on the affected area of the site until a mitigation Written Scheme of Investigation detailing the agreed strategy for archaeological excavation and/or preservation in situ has been submitted to and approved in writing by the Local Planning Authority.

REASON:

To ensure that archaeological remains of interest are either preserved in situ or appropriately excavated and recorded, in accordance with Policy 64 (Archaeological Assets) of the Uttlesford Local Plan 2021–2041 and paragraphs 218 and 222 of the National Planning Policy Framework

- 18 No development or preliminary groundworks shall commence on any area identified as containing archaeological deposits until the archaeological fieldwork required by the approved mitigation Written Scheme of Investigation has been completed to the satisfaction of the Local Planning Authority.

REASON:

To safeguard archaeological heritage prior to development taking place, in accordance with Policy 64 of the Uttlesford Local Plan and paragraph 218 of the National Planning Policy Framework.

- 19 Within six months of the completion of archaeological fieldwork (or within such other timescale as may be agreed in writing by the Local Planning Authority), the applicant shall submit a Post-Excavation Assessment and/or Updated Project Design for approval. Following approval, the applicant shall ensure:

- Completion of post-excavation analysis;
- Preparation of a final report and site archive; and
- Deposition of the archive with the appropriate local museum and submission of a publication report.

REASON:

To secure proper recording, analysis and dissemination of archaeological findings, in accordance with Policy 64 of the Uttlesford Local Plan 2021–2041 and paragraph 218 of the National Planning Policy Framework, which seek to advance understanding of heritage assets affected by development.

- 20 No development shall commence until the Local Planning Authority has received written confirmation that works affecting Great Crested Newt are authorised through either:

- a) a licence issued by Natural England; or
- b) a valid Great Crested Newt District Level Licence, together with a copy of the issued licence.

The development shall thereafter be carried out in accordance with the approved licensing arrangements.

REASON:

To ensure that impacts on Great Crested Newts are appropriately mitigated in accordance with wildlife legislation, Policy 40 of the Uttlesford Local Plan, and Section 15 of the National Planning Policy Framework.

- 21 Prior to the commencement of development, details shall be submitted to and approved in writing by the Local Planning Authority demonstrating:

a) The measures that will be undertaken to minimise groundwater discharges into the public sewer, including from dewatering, excavations, or other construction activities; and

b) How existing public sewers and lateral drains within or adjacent to the site will be protected, including confirmation that any required build-over or diversion agreements have been secured with Thames Water. The approved measures shall be implemented in full for the duration of construction and thereafter where relevant.

REASON:

To protect the integrity and capacity of the public sewerage network and prevent pollution arising from uncontrolled groundwater discharges, in accordance with Policy 34 (Water Supply and Protection of Water Resources) of the Uttlesford Local Plan 2021–2041 and paragraphs 170 and 180 of the National Planning Policy Framework.

- 22 No development shall take place until an Instrument Flight Procedure (IFP) Assessment has been submitted to and approved in writing by the Local Planning Authority, in consultation with the Stansted Airport Aerodrome Safeguarding Authority.

The assessment shall:

- a) Be undertaken by a Civil Aviation Authority (CAA) approved Procedure Design Organisation (APDO);
- b) Assess the impact of the proposed development, including any temporary construction equipment (such as cranes), on published and planned Instrument Flight Procedures;
- c) Demonstrate that the development will not adversely affect the safety or operation of aircraft using Stansted Airport.

The development shall thereafter be carried out in accordance with the approved assessment and any mitigation identified.

REASON:

In the interests of aviation safety and to ensure that the development does not adversely affect aircraft operations at Stansted Airport, in accordance with Core Policy 32a (Aerodrome Safeguarding) of the Uttlesford Local Plan 2021–2041 and paragraph 183 of the National Planning Policy Framework.

23 Prior to works above slab level, a Biodiversity Enhancement Strategy for protected, Priority and threatened species shall be submitted to and approved in writing by the Local Planning Authority.
The Strategy shall include:

- a) Conservation objectives for the enhancement measures;
- b) Detailed designs and specifications;
- c) Locations shown on plans;
- d) Implementation responsibilities; and
- e) Details of maintenance and aftercare where relevant.

The enhancement measures shall be implemented in accordance with the approved Strategy and retained thereafter.

REASON:

To secure biodiversity enhancements in line with Policy 40 (Biodiversity and Nature Recovery) of the Uttlesford Local Plan 2021–2041 and paragraphs 187(d) and 193(d) of the National Planning Policy Framework, which seek to deliver measurable net gains for biodiversity beyond mitigation.

24 No development shall commence within a phase until a detailed surface water drainage scheme, based on sustainable drainage principles and an assessment of the hydrological and hydrogeological context of the site, has been submitted to and approved in writing by the Local Planning Authority.

The scheme shall include, but not be limited to:

- a) Verification of the suitability of infiltration, informed by infiltration testing carried out in accordance with BRE 365 and the CIRIA SuDS Manual (C753);
- b) Limiting discharge rates to 1:1 greenfield runoff rates for all storm events up to and including the 1 in 100 year event plus 40% allowance for climate change;
- c) Sufficient storage to ensure no increase in flood risk off-site during all storm events up to and including the 1 in 100 year plus 40% climate change event;
- d) Demonstration that storage features can half-empty within 24 hours for the critical storm event or otherwise accommodate consecutive storm events;
- e) Final hydraulic modelling and calculations;
- f) Details of water quality treatment in accordance with the Simple Index Approach set out in the CIRIA SuDS Manual;
- g) Detailed engineering drawings of all drainage components; and
- h) A final drainage plan showing finished floor levels, exceedance and conveyance routes, and the location and sizing of all drainage features.

The approved scheme shall be implemented prior to first occupation of the development, unless otherwise agreed in writing by the Local Planning Authority.

REASON:

To prevent flooding, ensure the effective operation of sustainable drainage systems over the lifetime of the development, and safeguard the water environment, in accordance with Policy 36 (Flood Risk) and Policy 37 (Sustainable Drainage Systems) of the Uttlesford Local Plan 2021–2041 and paragraphs 163 and 170 of the National Planning Policy Framework, which require development to avoid increasing flood risk and to incorporate sustainable drainage solutions.

- 25 No development shall commence until a scheme to minimise the risk of off-site flooding and pollution from surface water run-off and groundwater during construction has been submitted to and approved in writing by the Local Planning Authority.

The approved scheme shall be implemented for the duration of the construction period.

REASON:

To ensure that construction activities do not increase flood risk or contribute to water pollution, in accordance with Policy 36 (Flood Risk) of the Uttlesford Local Plan 2021–2041 and paragraphs 163 and 170 of the National Planning Policy Framework, which require development to manage flood risk and protect water quality throughout all phases of development.

- 26 No development shall commence within a phase until details of any groundworks for that phase involving excavations below the chalk groundwater table (including piling or geothermal systems, where applicable) have been submitted to and approved in writing by the Local Planning Authority.

The details shall include a ground investigation and method statement demonstrating how potential pollution pathways will be avoided and how any contamination risks will be managed so as to protect the chalk aquifer.

Approved measures shall be implemented in full.

REASON

To protect groundwater quality and the chalk aquifer from pollution, in accordance with Policy 34 (Water Supply and Protection of Water Resources) of the Uttlesford Local Plan 2021–2041 and paragraphs 174 and 180 of the National Planning Policy Framework, which seek to prevent unacceptable risks to the water environment.

- 27 Prior to commencement of development, details shall be submitted to and approved in writing by the Local Planning Authority demonstrating

how existing water supply infrastructure within or adjacent to the site will be protected or diverted, as necessary.

The approved measures shall be implemented in accordance with the agreed details.

REASON:

To ensure the safe operation and protection of existing water supply infrastructure, in accordance with Policy 34 (Water Supply and Protection of Water Resources) of the Uttlesford Local Plan 2021–2041 and paragraph 167 of the National Planning Policy Framework, which requires development to be supported by appropriate infrastructure.

- 28 Prior to the commencement of development, details of on-site Accessible Natural Greenspace (ANG) shall be submitted to and approved in writing by the Local Planning Authority.

The details shall:

- a) Demonstrate that the ANG is of sufficient quality, size, and functionality to meet relevant Natural England Green Infrastructure Standards;
- b) Be designed to provide an attractive alternative to recreational visits to Hatfield Forest; and
- c) Include details of layout, access, landscaping, and long-term management.

The ANG shall be provided in accordance with the approved details prior to occupation of the development and retained thereafter.

REASON:

To mitigate recreational pressure on Hatfield Forest SSSI / NNR by providing high-quality alternative greenspace, in accordance with Policies 39 (Green and Blue Infrastructure) and 40 (Biodiversity and Nature Recovery) of the Uttlesford Local Plan 2021–2041 and paragraphs 174 and 180 of the National Planning Policy Framework.

- 29 No development shall commence until details of the surface water drainage design have been submitted to and approved in writing by the Local Planning Authority, in consultation with the Stansted Airport Aerodrome Safeguarding Authority.

The approved scheme shall demonstrate that:

- a) Attenuation basins are avoided in favour of geocellular tanks, or
- b) Any attenuation features are normally dry and drain down within 48 hours following a 1-in-1-year rainfall event, with no permanent standing water exceeding 15cm in depth and vegetation maintained above water level.

The approved drainage scheme shall be implemented and thereafter retained as approved.

REASON:

In the interests of flight safety and to minimise the risk of bird strike by avoiding the creation of habitats attractive to hazardous bird species, in accordance with Core Policy 32a (Aerodrome Safeguarding) of the Uttlesford Local Plan 2021–2041 and paragraph 183 of the National Planning Policy Framework, which requires development to safeguard aviation operations.

- 30 No development shall commence until a Bird Hazard Management Plan has been submitted to and approved in writing by the Local Planning Authority, in consultation with the Stansted Airport Aerodrome Safeguarding Authority.
The Plan shall cover:

- a) Both the construction phase and operational phase of the development; and
 - b) Measures to prevent the attraction, foraging, nesting, or roosting of bird species hazardous to aviation.
- The approved Plan shall be implemented in full and retained for the lifetime of the development.

REASON

To ensure the development does not increase the risk of bird strike to aircraft using Stansted Airport, in accordance with Policy 32a of the Uttlesford Local Plan and paragraph 183 of the NPPF.

- 31 No development above ground level shall take place until a detailed Landscape Plan has been submitted to and approved in writing by the Local Planning Authority, in consultation with the Stansted Airport Aerodrome Safeguarding Authority.

The Landscape Plan shall:

- a) Demonstrate that fruit and berry-bearing species comprise no more than 15% of the overall planting mix;
- b) Avoid the use of tree species known to develop dense or robust crowns, including (but not limited to) Oak, Scots Pine and Beech;
- c) Ensure that the height, growth characteristics and siting of planting will not breach aerodrome safeguarding surfaces or otherwise pose a hazard to aviation.

The approved landscaping shall be implemented in accordance with the approved details and thereafter maintained.

REASON:

To minimise the attraction of hazardous bird species and to ensure that planting does not conflict with aerodrome safeguarding requirements, in the interests of flight safety, in accordance with Core Policy 32a of the

Uttlesford Local Plan and paragraph 183 of the National Planning Policy Framework.

- 32 No development above ground floor slab level shall commence until a Climate, Energy & Carbon Strategy for the development has been submitted to and approved in writing by the Local Planning Authority. The Strategy shall demonstrate how the dwellings will achieve:

1.Net zero operational carbon (Core Policy 22) through energy-efficient design, low-carbon systems, and on-site renewable energy.

2.Minimised overheating risk (Core Policy 23) using passive and, if necessary, mechanical measures to ensure comfortable internal temperatures.

3.Reduced embodied carbon (Core Policy 24) through material selection, construction methods, and waste minimisation.

The approved Strategy shall thereafter be implemented in full, and a verification report confirming compliance shall be submitted within six months of first occupation or phase of the development.

REASON:

To ensure that the development complies with Core Policy 1, 22, 23, 24 of the Uttlesford Local Plan 2021 2041 and contributes to the reduction of greenhouse gas emissions, delivering sustainable, low-carbon, and climate-resilient homes in accordance with the Council's strategy for climate mitigation and national policy objectives".

- 33 Prior to first occupation, the vehicular access to that phase shall be constructed in accordance with the approved drawings, including appropriate carriageway width and visibility splays. The access shall thereafter be retained and maintained free of obstruction.

REASON:

To ensure safe and suitable access to the highway network, in accordance with Core Policy 27 of the Uttlesford Local Plan and the National Planning Policy Framework (2024).

- 34 Prior to first occupation, a Residential Travel Information Pack shall be provided for each dwelling, to be approved by the Local Planning Authority in consultation with the Highway Authority. The packs shall include information and incentives to promote sustainable travel, including public transport use, walking and cycling.

REASON:

To promote sustainable transport choices and reduce dependence on the private car, in accordance with Core Policies 26 and 28 of the Uttlesford Local Plan and the National Planning Policy Framework (2024).

35 Prior to occupation of the development, details of a signposted circular dog-walking route of approximately 2.3–2.5 kilometres shall be submitted to and approved in writing by the Local Planning Authority. The route shall:

- a) Be clearly signposted from within the development;
- b) Make use of on-site routes and, where appropriate, existing public rights of way and highways; and
- c) Be designed to encourage regular use as an alternative to walking at Hatfield Forest.

The approved route shall be constructed prior to the occupation of the development and shall be retained and maintained for the lifetime of the development, unless otherwise agreed in writing by the Local Planning Authority.

REASON:

To further mitigate recreational impacts on Hatfield Forest SSSI / NNR by encouraging alternative walking opportunities close to the development, in accordance with Policies 39 and 40 of the Uttlesford Local Plan 2021–2041 and paragraphs 174 and 180 of the National Planning Policy Framework

36 Prior to first occupation, a Surface Water Drainage Maintenance Plan shall be submitted to and approved in writing by the Local Planning Authority.

The Plan shall include:

- a) Details of the maintenance activities and frequencies for all drainage features;
- b) Identification of the party or parties responsible for maintenance; and
- c) Where relevant, details of long-term funding and management arrangements.

The approved Maintenance Plan shall be adhered to for the lifetime of the development.

REASON

To ensure appropriate long-term management and maintenance of the surface water drainage system so that it continues to function effectively in mitigating flood risk, in accordance with Policy 37 (Sustainable Drainage Systems) of the Uttlesford Local Plan 2021–2041 and paragraph 170 of the National Planning Policy Framework.

37 No part of the development shall be occupied until written confirmation has been provided to the Local Planning Authority that either:

- a) All necessary upgrades to the foul water network required to accommodate the additional flows from the development have been completed; or
 - b) A phasing plan for development and foul water infrastructure, agreed with Thames Water and the Local Planning Authority, is in place.
- Where a phasing plan is approved, no occupation shall take place other than in strict accordance with the approved phasing schedule.

REASON

To ensure that sufficient foul water infrastructure is in place to serve the development and to prevent sewer flooding and pollution incidents, in accordance with Policy 34 (Water Supply and Protection of Water Resources) of the Uttlesford Local Plan 2021–2041 and paragraphs 167 and 173 of the National Planning Policy Framework, which require development to be supported by appropriate infrastructure and to prevent unacceptable risks to the water environment.

- 38 Prior to first occupation, details of firefighting water provision shall be submitted to and approved in writing by the Local Planning Authority. The details shall demonstrate that:
- a) Adequate water supplies for firefighting purposes are available to serve the development; and
 - b) Provision has been designed having regard to guidance from Essex County Fire & Rescue Service.

Any required infrastructure shall be installed in accordance with the approved details prior to occupation.

REASON:

To ensure sufficient water supplies are available for emergency firefighting operations, in accordance with Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041 and paragraph 92 of the National Planning Policy Framework, which seeks to ensure development supports safe communities and emergency response.

- 39 Prior to occupation of the development, the provision of an access formed at right angles to Forest Hall Road, as shown in principle on drawing no. 08551-CI-E-SK11 Rev P05, shall be provided to include, but not be limited to: a minimum 6 metre carriageway width with appropriate radii to accommodate the swept path of vehicles regularly using the site access; 1 x 2 metre wide footway; clear to ground visibility splays with dimensions of 2.4 metres by 43 metres to both the east and west, as measured from and along the nearside edge of the carriageway.

Such vehicular visibility splays shall be provided before the road junction is first brought into use and shall thereafter be retained free of any obstruction at all times.

REASON:

To ensure that vehicles can enter and leave the highway in a controlled manner, in forward gear, with adequate inter-visibility between vehicles using the access and those on the existing highway, in the interests of highway safety, in accordance with Core Policy 26 (Sustainable Transport & Connectivity) and Core Policy 27 (Assessing Transport Impact) of the Uttlesford Local Plan 2021–2041, and the National Planning Policy Framework (2024).

- 40 The development shall be carried out strictly in accordance with the mitigation and enhancement measures set out in the Ecology Chapter (Baker Consultants, October 2025). All such measures shall be implemented in full and retained thereafter.

REASON

To ensure the conservation and enhancement of protected and Priority species and habitats, in accordance with Policy 39 (Green and Blue Infrastructure) and Policy 40 (Biodiversity and Nature Recovery) of the Uttlesford Local Plan 2021–2041 and Section 15 of the National Planning Policy Framework.

- 41 The applicant, or any successor in title, shall maintain annual records of inspection and maintenance of the surface water drainage system in accordance with the approved Maintenance Plan. Such records shall be made available to the Local Planning Authority upon request.

REASON:

To ensure the sustainable drainage system is properly maintained for the lifetime of the development and continues to protect against flood risk, in accordance with Policy 37 (Sustainable Drainage Systems) of the Uttlesford Local Plan 2021–2041 and the National Planning Policy Framework.

- 42 All construction works shall be carried out in accordance with best practice guidance for the control of water pollution, including measures set out in CIRIA Publication C532 – Control of Water Pollution from Construction.

In the event that previously unidentified contamination is encountered during construction, works shall cease in the affected area and appropriate investigation, monitoring, and remediation measures shall be implemented in accordance with details submitted to and approved by the Local Planning Authority.

REASON:

To prevent pollution of groundwater and surface waters during construction, in accordance with Policy 34 (Water Supply and Protection

of Water Resources) of the Uttlesford Local Plan 2021–2041 and paragraph 180 of the National Planning Policy Framework.

- 43 Surface water from the development shall be managed in accordance with the approved drainage strategy and shall not be discharged to the public foul sewer network. Should any future proposal seek to discharge surface water to the public sewer, a separate planning permission shall be obtained.

REASON:

To ensure the effective separation of surface water and foul drainage and to avoid pressure on the public sewerage network, in accordance with Policy 37 (Sustainable Drainage Systems) of the Uttlesford Local Plan 2021–2041 and paragraph 173 of the National Planning Policy Framework, which promotes sustainable drainage and protection of sewer infrastructure.

- 44 Notwithstanding the provisions of the Town and Country Planning (General Permitted Development) (England) Order 2015 (or any Order revoking or re-enacting it), no reflective materials, including photovoltaic panels, shall be installed unless details (including a Glint and Glare Assessment, where applicable) have been submitted to and approved in writing by the Local Planning Authority.

Only clear or obscure glazing shall be permitted without further approval.

REASON

To avoid glint, glare, and potential ocular distraction affecting aviation operations at Stansted Airport, in accordance with Policy 32a (Aerodrome Safeguarding) of the Uttlesford Local Plan and paragraph 183 of the National Planning Policy Framework.

- 45 All dwellings hereby approved shall be constructed in accordance with Requirement M4(2) (Accessible and Adaptable Dwellings) of the Building Regulations 2010 (Approved Document M, Volume 1).

In addition, not less than 5% of the dwellings hereby approved shall be constructed as wheelchair-accessible and adaptable dwellings in accordance with Requirement M4(3) of the Building Regulations 2010. The approved dwellings shall be retained as such for the lifetime of the development.

REASON:

To ensure a high standard of accessibility and inclusive design, meeting the needs of older people, disabled people and households with reduced mobility, in accordance with Policy 48 (Housing Mix and Type) and Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041, and Section 12 of the National Planning Policy

Framework, which seek to create safe, accessible and inclusive places that meet the changing needs of society.

- 46 A minimum of one electric vehicle charging point shall be installed for each dwelling hereby approved.

All charging points shall be fully wired, installed, and operational, ready for use prior to first occupation of the associated dwelling.

The charging infrastructure shall thereafter be retained for the lifetime of the development.

REASON:

To encourage the uptake of low-emission vehicles and reduce carbon emissions in accordance with Policy 29 (Electric and Low Emission Vehicles) and Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041, Section 14 of the National Planning Policy Framework, and the requirements of Approved Document S (Infrastructure for the Charging of Electric Vehicles) 2021.

- 47 The development hereby approved shall be constructed to meet the optional requirement under Part G of the Building Regulations 2010 for the maximum potential consumption of wholesome water of 110 litres per person per day.

The approved dwellings shall be retained as such for the lifetime of the development.

REASON

To minimise the consumption of water resources and promote sustainable development in an area of water stress, in accordance with Policy 34 (Water Supply and Protection of Water Resources) and Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041, and Section 14 of the National Planning Policy Framework, which seek to address climate change and support the efficient use of natural resources.

- 48 Any air source heat pumps installed as part of the development shall be specified, sited, designed, enclosed, or otherwise acoustically attenuated to ensure that noise resulting from their operation does not exceed the existing background noise level when measured at the nearest noise-sensitive receptor, inclusive of any penalty for tonal, impulsive or other distinctive acoustic characteristics, when assessed in accordance with BS 4142:2014 (or any subsequent updates or replacements).

REASON:

To safeguard the residential amenity of nearby occupiers from unacceptable noise and disturbance, in accordance with Policy 51 (Pollution and Contamination) and Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041, and Section 15 of

the National Planning Policy Framework, which seek to prevent development from resulting in harmful noise impacts.

- 49 No pedestrian or cycle route hereby approved shall be brought into use until details of its design have been submitted to and approved in writing by the Local Planning Authority.

The details shall include:

- a) the alignment, width and gradients of each route;
- b) the proposed surface materials and construction specifications;
- c) details of drainage arrangements and long-term maintenance;
- d) lighting proposals (where appropriate), including luminance levels and measures to minimise impacts on residential amenity and biodiversity;
- e) boundary treatments, overlooking, and other measures to ensure user safety and security; and
- f) measures to ensure accessibility and inclusive use for all users, including those with mobility impairments.

The approved routes shall be implemented prior to first use and retained and maintained thereafter in accordance with the approved details.

REASON:

To ensure that pedestrian and cycle routes are safe, inclusive, accessible and of an appropriate quality to encourage walking and cycling as part of everyday travel, in accordance with Policy 26 (Providing for Sustainable Transport and Connectivity) and Policy 52 (Good Design Outcomes and Process) of the Uttlesford Local Plan 2021–2041, and Sections 9 and 12 of the National Planning Policy Framework, which seek to promote healthy, active and inclusive communities and high-quality movement networks.

- 50 The development hereby permitted shall be carried out in full accordance with the approved Sites South of Stansted Mountfitchet – Design Code (Revision B, January 2026) prepared by Feilden Clegg Bradley Studios, including the site-wide design principles, character area requirements, and the landscape-led master planning approach.

All subsequent reserved matters applications shall demonstrate, through drawings and a Design Compliance Statement, how the proposals accord with the approved Design Code. No development shall commence for any phase unless and until the relevant reserved matters have been approved in writing by the Local Planning Authority and are in accordance with the Design Code.

REASON:

To secure a high quality, landscape-led and locally distinctive form of development, to ensure consistency with the approved master planning and character principles, and to achieve well-designed places, in accordance with Core Policy 52 (Good Design Outcomes and Process), Core Policy 41 (Landscape Character), and Core Policy 39 (Green and Blue Infrastructure) of the Uttlesford Local Plan (Submission Version,

2021–2041), the Uttlesford District-Wide Design Code, and paragraphs 130–139 of the National Planning Policy Framework.

- 51 Class Uses: the development hereby permitted shall include uses within Class E of the Town and Country Planning (Use Classes) Order 1987 (as amended) only within the following maximum gross internal floorspace limits:
- a. Retail (Class E(a)): no more than 300 sqm
 - b. Café / food and drink (Class E(b)): no more than 200 sqm
 - c. Office (Class E(g)(i)): no more than 500 sqm
 - d. Nursery / crèche (Class E(f)): no more than 300 sqm
 - e. Gym / indoor recreation (Class E(d)): no more than 700 sqm

The precise quantum, distribution, and layout of these uses shall be submitted to and approved in writing by the Local Planning Authority as part of the Reserved Matters application(s). The development shall thereafter be carried out in accordance with the approved details. The total combined Class E floorspace shall not exceed 2000 sqm. No individual unit shall exceed the relevant maximum floorspace specified above unless otherwise agreed in writing by the Local Planning Authority.

REASON:

To ensure that the scale and composition of non-residential uses remain consistent with the transport assessment and do not give rise to unacceptable impacts on the operation or safety of the surrounding highway network, in accordance with Core Policy 26 (Sustainable Transport & Connectivity) and Core Policy 27 (Assessing Transport Impact) of the Uttlesford Local Plan 2021–2041, and the National Planning Policy Framework (2024).

- 52 No external lighting shall be installed on site unless in accordance with a scheme first submitted to and approved in writing by the Local Planning Authority.

The lighting scheme shall be submitted prior to the installation of any lighting and, in the case of phased development, prior to the first occupation of each phase to which it relates.

The scheme shall include:

- a) details of all external lighting, including layout plans, specifications, and lighting calculations;
- b) confirmation that all lighting is designed to be capped at the horizontal with no upward light spill;
- c) identification of ecological features on and adjacent to the site that are sensitive to artificial lighting, including features important for bat foraging and commuting;
- d) lighting contour plans, isolux drawings, and technical specifications demonstrating that external lighting has been designed and positioned

to avoid disturbing bats or preventing use of established routes and habitats; and

e) measures to ensure that unacceptable light spill, glare, or obtrusive light impacts on neighbouring residential properties are avoided.

All external lighting shall be installed in accordance with the approved scheme prior to first occupation of the relevant phase and shall thereafter be retained and maintained as approved. No additional external lighting shall be installed unless otherwise agreed in writing by the Local Planning Authority.

REASON:

To prevent distraction or confusion to pilots and air traffic controllers in the interests of aviation safety; to conserve and enhance biodiversity including protected species; and to safeguard the amenities of neighbouring occupiers, in accordance with Policy 32a, Core Policies 40 and 44 of the Uttlesford Local Plan 2021–2041 and paragraphs 180, 183 and 186 of the National Planning Policy Framework.

Addendum – Housing Delivery, Grey Belt and Very Special Circumstances

The planning balance within this report has been undertaken on the basis that the site is capable of being regarded as Grey Belt land and that the presumption in favour of sustainable development is engaged, having regard to the Council's current position in respect of housing land supply.

However, as set out within the applicant's Planning Statement Addendum, the Council's housing land supply position may change, including through the adoption of the Uttlesford Local Plan and updated Housing Delivery Test results, such that the presumption in favour of sustainable development would no longer apply.

It is also recognised that an alternative conclusion could be reached as to whether the site constitutes Grey Belt land.

In circumstances where either:

- a five-year housing land supply can be demonstrated and/or the Housing Delivery Test exceeds 75%; or
- the site is not considered to constitute Grey Belt land;

the proposal would be assessed as inappropriate development within the Green Belt, requiring the demonstration of Very Special Circumstances, whereby the harm to the Green Belt and any other harm must be clearly outweighed by other considerations.

Assessment of Benefits and Weight

Having regard to the submitted material, including the applicant's addendum, the proposal gives rise to the following benefits:

Substantial weight

Delivery of 50% affordable housing, making a significant contribution towards a clearly evidenced and acute need within the District.

Highly sustainable location, including proximity to a well-served railway station and strong connectivity, which is uncommon within Green Belt locations.

Design quality, which has been identified as exemplary and landscape-led, representing a high-quality form of development.

Significant weight

Proximity to Stansted Airport and major employment areas, supporting economic growth and reducing commuting distances.

Social infrastructure benefits, including safeguarded land for school expansion and a village hall.

Environmental enhancements, including biodiversity net gain significantly in excess of statutory requirements.

Moderate to substantial weight

Green infrastructure and strategic landscape provision, including extensive walking and cycling routes and the delivery of a wider biodiversity bank, which provides both recreational benefits and ecological mitigation.

Moderate weight

Economic benefits, including construction employment and support for local services
Accessibility improvements, including enhanced pedestrian connections to the railway station

Overall Conclusion on Very Special Circumstances

In the event that the proposal is treated as inappropriate development in the Green Belt, substantial weight must be given to harm by reason of inappropriateness, alongside harm to openness and encroachment into the countryside, as identified within the main report.

Scenario 1 – Updated housing delivery position (5YHLS / HDT >75%)

Where the Council is able to demonstrate a five-year housing land supply and/or a Housing Delivery Test above 75%, the weight afforded to housing delivery, including affordable housing, would be materially reduced in the overall planning balance. In these circumstances, notwithstanding the significant and wide-ranging benefits identified above, it is considered that the proposal would be unlikely to clearly outweigh the substantial harm to the Green Belt, and therefore Very Special Circumstances would be unlikely to exist.

Scenario 2 – Non-Grey Belt conclusion with ongoing housing shortfall

In the event that the site is not considered to constitute Grey Belt land, the proposal would represent inappropriate development within the Green Belt. While the provision of housing, including affordable housing, attracts weight, housing delivery is a general policy objective and not in itself, exceptional. Similarly, the benefits of the scheme, including its design quality, sustainability measures, biodiversity enhancement and infrastructure provision, are largely policy-compliant features, (although in some cases exceed policy minima) expected of major development proposals and should therefore attract only moderate weight in the planning balance.

The identified harms attract substantial weight under the NPPF and the adopted Local Plan. Taken cumulatively, the benefits identified by the applicant do not amount to VSC sufficient to clearly outweigh the substantial harm arising from inappropriate

development in the Green Belt. To conclude otherwise would risk establishing a precedent whereby similar arguments could justify development across numerous Green Belt sites, thereby undermining the fundamental purpose and openness of the Green Belt.

APPENDIX 1- NATIONAL HIGHWAYS



National Highways Planning Response (NHPR 25-01) Formal Recommendation to an Application for Planning Permission

From: Steven Thulborn (Head of Planning & Development)
Operations Directorate
East Region
National Highways
PlanningEE@nationalhighways.co.uk

To: Uttlesford District Council (FAO Chris Tyler)
planning@uttlesford.gov.uk

CC: transportplanning@dft.gov.uk
spatialplanning@nationalhighways.co.uk

Council's Reference: UTT/25/3012/OP

Location: South-West Of Mountfitchet High School Forest Hall Road Stansted Essex

Proposal: Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home, and safeguarded land for secondary school use and village hall with access, landscaping, and associated infrastructure. All matters reserved except access.

National Highways Ref: NH/25/13714

Referring to the consultation on a planning application dated 12 November 2025, referenced above, in the vicinity of the M11 or A120 that forms part of the Strategic Road Network, notice is hereby given that National Highways' formal recommendation is that we:

- ~~a) offer no objection (see reasons at Annex A);~~
- b) recommend that conditions should be attached to any planning permission that may be granted (see Annex A – National Highways recommended Planning Conditions & reasons);
- ~~c) recommend that planning permission not be granted for a specified period (see reasons at Annex A);~~
- ~~d) recommend that the application be refused (see reasons at Annex A).~~

APPENDIX 2- LEAD LOCAL FLOOD AUTHORITY

development during all storm events up to and including the 1 in 100 year plus 40% climate change event.

- Final modelling and calculations for all areas of the drainage system.
- The appropriate level of treatment for all runoff leaving the site, in line with the CIRIA SuDS Manual C753.
- Detailed engineering drawings of each component of the drainage scheme.
- A final drainage plan which details exceedance and conveyance routes, FFL and ground levels, and location and sizing of any drainage features.
- A written report summarising the final strategy and highlighting any minor changes to the approved strategy.

The scheme shall subsequently be implemented prior to occupation.

Reason:

- To prevent flooding by ensuring the satisfactory storage of/disposal of surface water from the site.
- To ensure the effective operation of SuDS features over the lifetime of the development.
- To provide mitigation of any environmental harm which may be caused to the local water environment
- Failure to provide the above required information before commencement of works may result in a system being installed that is not sufficient to deal with surface water occurring during rainfall events and may lead to increased flood risk and pollution hazard from the site.

Thank you for your email received on 16/02/2025 which provides this Council with the opportunity to assess and advise on the proposed surface water drainage strategy for the above-mentioned planning application.

As the Lead Local Flood Authority (LLFA) this Council provides advice on SuDS schemes for major developments. We have been statutory consultee on surface water since the 15th April 2015.

In providing advice this Council looks to ensure sustainable drainage proposals comply with the required standards as set out in the following documents:

- Non-statutory technical standards for sustainable drainage systems
- Essex County Council's (ECC's) adopted Sustainable Drainage Systems Design Guide
- The CIRIA SuDS Manual (C753)
- BS8582 Code of practice for surface water management for development sites.

Lead Local Flood Authority position

Having reviewed the Flood Risk Assessment and the associated documents which accompanied the planning application, we wish to issue a **do not object** the granting of planning permission based on the following:

Condition: No works shall take place until a detailed surface water drainage scheme for the site, based on sustainable drainage principles and an assessment of the hydrological and hydro geological context of the development, has been submitted to and approved in writing by the local planning authority. The scheme should include but not be limited to:

- Limiting discharge rates to 10.3l/s for all storm events up to and including the 1 in 100 year rate plus 40% allowance for climate change.
- Provide sufficient storage to ensure no off site flooding as a result of the

Condition: No works shall take place until a scheme to minimise the risk of offsite flooding caused by surface water run-off and groundwater during construction works and prevent pollution has been submitted to, and approved in writing by, the local planning authority. The scheme shall subsequently be implemented as approved.

Reason: The National Planning Policy Framework paragraph 103 and paragraph 109 state that local planning authorities should ensure development does not increase flood risk elsewhere and does not contribute to water pollution.

Construction may lead to excess water being discharged from the site. If dewatering takes place to allow for construction to take place below groundwater level, this will cause additional water to be discharged. Furthermore the removal of topsoils during construction may limit the ability of the site to intercept rainfall and may lead to increased runoff rates. To mitigate increased flood risk to the surrounding area during construction there needs to be satisfactory storage of/disposal of surface water and groundwater which needs to be agreed before commencement of the development.

Construction may also lead to polluted water being allowed to leave the site. Methods for preventing or mitigating this should be proposed.

Condition: No works shall take place until a Maintenance Plan detailing the maintenance arrangements including who is responsible for different elements of the surface water drainage system and the maintenance activities/frequencies, has been submitted to and agreed, in writing, by the Local Planning Authority.

Should any part be maintainable by a maintenance company, details of long term funding arrangements should be provided.

Reason: To ensure appropriate maintenance arrangements are put in place to enable the surface water drainage system to function as intended to ensure mitigation against flood risk.

Failure to provide the above required information before commencement of works may result in the installation of a system that is not properly maintained and may increase flood risk or pollution hazard from the site.

APPENDIX 3- NATURAL ENGLAND

Planning consultation: Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home, and safeguarded land for secondary school use and village hall with access, landscaping, and associated infrastructure. All matters reserved except access.

Location: East Of The Mountfitchet High School Forest Hall Road Stansted.

Thank you for your consultation, on the above, which was received by Natural England on 20 March 2026.

Natural England is a non-departmental public body. Our statutory purpose is to ensure that the natural environment is conserved, enhanced, and managed for the benefit of present and future generations, thereby contributing to sustainable development.

SUMMARY OF NATURAL ENGLAND'S ADVICE

NO OBJECTION - SUBJECT TO APPROPRIATE MITIGATION BEING SECURED

We consider that without appropriate mitigation, the application has potential to damage or destroy the interest features for which Hatfield Forest Site of Special Scientific Interest (SSSI) and National Nature Reserve (NNR) has been notified.

To mitigate these adverse effects and make the development acceptable, the following mitigation measures are required:

- Financial contribution towards Strategic Access Management and Monitoring (SAMM) measures identified by the National Trust as landowners of £1,333.60 per new residential dwelling;
AND
- The provision of on-site Accessible Natural Greenspace (ANG) of sufficient high quality and size (refer to [GI Standards \(naturalengland.org.uk\)](https://www.naturalengland.org.uk/GI/Standards));
AND
- a signposted circular dog walking route of around 2.3-2.5 km from the new development, which could potentially make use of pedestrian links (PRoW and highways) in the local area.

We advise that an appropriate planning condition or obligation is attached to any planning permission to secure these measures.

A lack of objection does not mean that there are no significant environmental impacts. Natural England advises that all environmental impacts and opportunities are fully considered and relevant local bodies are consulted. Natural England's further advice on designated sites/landscapes and advice on other natural environment issues is set out below.

Hatfield Forest SSSI / NNR - further advice

Hatfield Forest is a National Nature Reserve (NNR). It is nationally designated as a Site of Special Scientific Interest (SSSI) and regarded to be of international importance for its ancient wood pasture-forest habitats. The interest features of these habitats are vulnerable to recreational impacts and within recent years there has been increasing concern regarding the number of visitors. It has been noted that there have been significant increases in visitor numbers, linked to nearby residential development. Both Natural England and the National Trust therefore have concerns regarding the impacts of increasing visitor pressure on the designated site and it is apparent that the current number of visitors is exceeding carrying capacity of some important SSSI habitats and features.

The National Trust has undertaken visitor surveys to establish a Zone of Influence (ZOI) for recreational impacts to Hatfield Forest SSSI / NNR, which has been determined to be 11.1km. Natural England regards this information as material and therefore would anticipate that the application be assessed in the context of these issues and the strategic mitigation solution to address recreational pressure impacts. Please note Natural England's Impact Risk Zones have since been updated to reflect this ZOI. New residential housing within this ZOI is likely to damage the interest features of Hatfield Forest SSSI/NNR.

The evidence in relation to recreational pressure has been shared with your authority and we wrote to all Local Planning Authorities identified as falling within the ZOI to confirm Natural England's position. The strategic mitigation solution comprises two elements:

- 1) Strategic Access Management and Monitoring (SAMM) package of measures undertaken within Hatfield Forest NNR/SSSI, to increase the resilience of the ancient woodland to recreational pressure; and,
- 2) For larger developments of 50+ dwellings, on and/or off site measures.

LPA Council Members are due to be consulted on a final draft Governance Agreement relating to the Mitigation Strategy in summer 2025. Please refer to the letter from Natural England to the partner LPAs and the National Trust dated 19 June 2025 (available from the LPAs) for the most recent update on the strategic mitigation solution.

We would take this opportunity to highlight the Local Planning Authority's duties under the Wildlife and Countryside Act 1981 (as amended), notably under section 28G with respect of the SSSI. Appropriate measures, such as the mitigation outlined above, should therefore be taken to ensure the conservation and enhancement of the SSSI. This is further reflected within paragraphs 174 and 180 of the NPPF, whereby authorities should seek to protect and enhance the natural environment, including sites of biodiversity value. Natural England advise that mitigation measures are sought to ensure compliance with the above referenced national policies.

We draw your attention to appeal reference s62A/2023/0019RD (Land to the north of Roseacres, between Parsonage Road and Smiths Green Lane, Takeley, Essex, CM22 6NZ (Land also known as Bull Field, Warish Hall Farm, Takeley, Essex)), with respect to the Hatfield Forest SSSI/NNR strategic mitigation solution.

Natural England advises that permission should not be granted until such time as the following mitigation measures have been secured through a planning condition / obligation:

- Financial contribution towards Strategic Access Management and Monitoring (SAMM) measures identified by the National Trust as landowners of £1,333.60 per new residential dwelling;
AND
- The provision of on-site Accessible Natural Greenspace (ANG) of sufficient high quality and size (refer to [GI Standards \(naturalengland.org.uk\)](https://www.naturalengland.org.uk));
AND
- a signposted circular dog walking route of around 2.3-2.5 km from the new development, which could potentially make use of pedestrian links (PRoW and highways) in the local area.

APPENDIX 4- SPORTS ENGLAND

Thank you for consulting Sport England on the above application.

Non-statutory planning advice

The proposed development does not fall within our statutory remit (Statutory Instrument 2015/595) and, therefore, we have not provided a detailed response in this case, but would wish to give the following advice to aid the assessment of the application. General planning guidance and advice can be found on our website:

https://www.sportengland.org/how-we-can-help/facilities-and-planning/planning-for-sport#planning_application

Loss of sports facilities

If the proposal involves the loss of any sports facility, then full consideration should be given to whether the proposal is in accordance with the National Planning Policy Framework (NPPF), is in accordance with local plan policies to protect sport and whether it meets any approved Playing Pitch Strategy or Built Sports Facility Strategy that the local authority has in place.

New sports facilities

If the proposal involves the provision of a new sports facility, then consideration should be given to the recommendation in any approved Playing Pitch Strategy or Built Sports Facility Strategy that the local authority may have in place. If they are fit for purpose, such facilities should be designed in accordance with design guidance notes produced by the relevant sport National Governing Body.

Design Guidance notes: <http://sportengland.org/facilities-planning/tools-guidance/design-and-cost-guidance/>

Meeting the needs of new housing

If the proposal involves the provision of additional housing, then it will generate additional demand for sport. If the local authority does not have the capacity to absorb the additional demand, then new and/or improved sports facilities should be secured in accordance with any approved local policy for social infrastructure, and priorities set out in any Playing Pitch Strategy or Built Sports Facility Strategy that the local authority has in place. Our Sports Facility Calculator is a tool that can be used to estimate the demand for key community sports facilities from a new population and convert that demand into sport facility requirements and costs. Guidance on how to use the tool is available on the link below.

Sports Facility Calculator: <https://www.activeplacespower.com/>

Other relevant guidance, tools and contacts

Active Design

In line with the Government's NPPF (including Section 8) and PPG (Health and wellbeing section), consideration should be given to how new development, especially new housing, will provide opportunities for people to lead healthy lifestyles and active communities. Sport England's Active Design guidance can be used to help with this when developing or assessing a proposal. Active Design provides ten principles to help ensure the design and layout of development encourages and promotes physical activity.

NPPF Section 8: <https://www.gov.uk/guidance/national-planning-policy-framework/8-promoting-healthy-communities>

PPG Health and wellbeing section: <https://www.gov.uk/guidance/health-and-wellbeing>

Sport England's Active Design Guidance: https://www.sportengland.org/how-we-can-help/facilities-and-planning/planning-for-sport#active-design_guidance/active-design

Planning conditions

We maintain a list of model planning conditions covering issues such as - creation of new playing field, compliance with planning notes, sports lighting and community use.

Community Use Agreements (CUA)

Central Government wishes to see the availability of sports facilities to the wider community when they're not being used by schools, as they see schools being at the heart of local communities. To help with this ambition we have developed a model CUA use agreement.

APPENDIX 5- ACTIVE TRAVEL ENGLAND

LPA Reference: UTT/25/3012/OP

ATE Reference: ATE/25/01701/OUT

Site Address: EAST OF THE MOUNTFITCHET HIGH SCHOOL, FOREST HALL ROAD, STANSTED, CM24 8UA

Proposal: Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home, and safeguarded land for secondary school use and village hall with access, landscaping, and associated infrastructure. All matters reserved except access

Standing Advice

Dear Sir/Madam,

Following a high-level review of the above planning consultation, Active Travel England has determined that standing advice should be issued and would encourage the local planning authority to consider this as part of its assessment of the application. Our standing advice can be found here:

<https://www.gov.uk/government/publications/active-travel-england-sustainable-development-advice-notes>

APPENDIX 6- STANSTED AIRPORT

Ref: UTT/25/3012/OP

Our ref: STN 2026-055

Proposal: Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home, and safeguarded land for secondary school use and village hall with access, landscaping, and associated infrastructure. All matters reserved except access

Location: South West Of Mountfitchet High School Forest Hall Road Stansted Essex

Dear UDC,

Thank you for consulting with the aerodrome safeguarding authority for Stansted Airport; we are now content with the proposed outline management of the SUDS; therefore, we can remove our holding objection. Please note that the conditions and informatives outlined within our response dated 01/12/2025 stand.

Kind regards,

MAG Aerodrome Safeguarding Authority
Manchester Airport|East Midlands Airport|Stansted Airport

E: aerodrome_safeguarding@stanstedairport.com

W: [Aerodrome Safeguarding | Manchester Airport](https://www.stanstedairport.com/aerodrome-safeguarding)



APPENDIX 7- ECC HIGHWAYS

Your Ref: UTT/25/3012/OP
Our Ref: HT/SD/RMc/60804
Date: 26/05/2026



CC (by email): Essex Highways Development Management

To: Uttlesford District Council
Assistant Director Planning & Building Control
Council Offices
London Road
Saffron Walden
Essex
CB11 4ER

Highways and Transportation
County Hall
Chelmsford
Essex
CM1 1QH

Recommendation

Application No.	UTT/25/3012/OP
Applicant	City & Country Stansted Ltd
Site Location	South West Of Mountfitchet High School Forest Hall Road Stansted Essex
Proposal	Outline application for up to 300 dwellings, up to 2000sqm of Class E uses (offices, shop, cafe) early years nursery, private gym), up to 60 bed care home and village hall with access, landscaping, and associated infrastructure. All matters reserved except access

The Highway Authority has assessed the information which has been submitted with the planning application. The assessment of the application and Transport Assessment was undertaken with reference to the National Planning Policy Framework 2024 and in particular paragraphs 115-117, the following was considered: access and safety; capacity; the opportunities for sustainable transport; and mitigation measures.

The applicant, with their transport consultant, has engaged positively in pre-application discussions with the highway authority, and further discussions have taken place during the determination period. This has resulted in a suite of updated documents forming part of the submission.

Taking each item from our response dated 17th March 2026, in turn, please see details below of our updated position on each:

Pedestrian/cycle access

The Access Drawing has been updated to include further details of how an active travel connection between Site F and Peachey Walk (forming bridleway 53 Stansted Mountfitchet 45) across Forest Hall Road could be provided. Detailed design drawings of the active travel route provision will be required and a condition has been drafted accordingly.

An active travel route is now indicated within the site running east-west between the main site access and the proposed crossing point.

A continuous pedestrian route will be available from the main site access to the bus stops on Church Road, including the introduction of dropped kerbs and tactile paving at the existing school car park access.

Vehicular access

The access road has been widened to 6.0m at its junction with Forest Hall Road to assist with tracking of larger vehicles into the site. All the recommendations made in the Stage 1 Road Safety Audit have

been accepted by the designers.

Highway Works – Forest Hall Road/B1383 Stansted Road

All the recommendations made in the Stage 1 Road Safety Audit have been now accepted by the designers and reflected in drawing no. 08551-PJA-SVS-CI-DR-005 Rev P03. The signed speed limit of the B1383 Stansted Road is 40mph. Traditional speed surveys could not be undertaken within the timeframe of the determination period, instead the applicant's transport consultant utilises data obtained from TomTom. The data provided has a sufficient sample size and indicates that it is appropriate to design the junction in accordance with the signed speed of the road.

At the detailed design stage for these works, the implementation of MOVA at the junction will be decided based on the best practice at that time.

The junction footprint remains unchanged from existing so all vehicle movements remain possible as existing. The introduction of signal equipment does result in pedestrian pinch-points, these will be considered fully during the detailed design stage to ensure they are kept as wide as possible. The applicant has shown that the narrowest pinch-point would be approximately 1m over a very short distance.

Public Rights of Way

The Revised Parameter Plan – Access and Movement shows the interaction between the development proposals and the Public Right of Way (PROW) network. Since submission, the Uttlesford Local Plan has been adopted and its Core Policy 30 sets out that major development proposals adjacent to an existing Right of Way are required to submit a Rights of Way Scheme that demonstrates how the development will protect, enhance and protect the PROW network. As this did not form part of the submission, a draft condition/obligation has been included below. For the avoidance of doubt, as it stands, the highway authority would not seek to adopt any of the additional active travel routes indicated on the Revised Parameter Plan – Access and Movement.

It is disappointing that the connections to bridleway 27 (Stansted Mountfitchet 45) have been removed on the Revised Parameter Plan – Access and Movement (drawing no. 2153-STS-FCB-02-XX-D-A-10043 Rev J) although we understand why this is the case (because they cannot be made without the landowner's permission). We respectfully request that the applicant endeavours to engage with the relevant landowner(s) to seek their agreement such that as the reserved matters come forward, connections to the bridleway may be possible.

Trip Generation/Distribution

Within the submitted TA, assumptions were made regarding internalised and linked trips within the site. As clarified in technical note (reference 08551-T-06-A), a sensitivity test was undertaken without allowing for internalised and/or linked trips. The trips generated for the retail, café and nursery elements were re-calculated resulting in higher traffic flows (see table 2 of technical note (reference 08551-T-06-A), and the traffic model for the proposed signalised junction was re-run (see below).

Modelling – Forest Hall Road/B1383 Stansted Road

The applicant's transport consultant has undertaken a review of the survey data used to inform the base model to ensure that it is calibrated and representative of the existing situation. The details of this review are presented at appendix A of technical note (reference 08551-T-04-C). The video survey footage confirms the current-day queuing in the peak hours. We are satisfied the base model is acceptable and appropriate.

The initial modelling presented in the Transport Assessment was based on indicative parameters, whereas the subsequent modelling has been based on a preliminary scheme drawing which allows for more accurate modelling. The modelling undertaken indicates that the proposed signalised junction will operate within capacity in all reasonable future scenarios – including when including the higher trip generation figures mentioned above. The application details a potential closure of Tot Lane to

vehicular through-traffic which would allow its re-purposing as an active travel route. We do not consider the closure of Tot Lane is necessary to mitigate the impact of this proposed development. The closure of Tot Lane has a slight detrimental impact on the capacity at the proposed signalised junction, so the modelling presented in the most recent technical note (reference 08551-T-06-A) represents a robust assessment as if Tot Lane were to remain open, there would be less traffic arriving at the signalised junction.

The proposed signalised junction runs on a 90-second cycle (below the maximum acceptable cycle time of 120 seconds). The pedestrian phase of the signals is called in the modelling every fourth cycle. The applicant's transport consultant asserts, and we agree, that this is a reasonable assumption as there is, and will be, limited pedestrian demand at the junction.

From a highway and transportation perspective the impact of the proposal is acceptable to the Highway Authority subject to the following conditions/obligations:

Concurrent with the first reserved matters application

1. **Public Rights of Way scheme:** concurrent with the first reserved matters application, the Developer shall submit to the Local Planning Authority for approval, in consultation with the highway authority, a Public Rights of Way scheme demonstrating how the development will protect, enhance and protect the Public Rights of Way network.

Reason: to ensure the continued safe passage of the public on the definitive right of way and accessibility in accordance with policies DM1 and DM11 of the Highway Authority's Development Management Policies as adopted as County Council Supplementary Guidance

2. **Highway works:** concurrent with the first reserved matters application, the Developer shall submit to the Local Planning Authority for approval, in consultation with the highway authority, a scheme of highway works, as shown indicatively on drawing nos. 08551-CI-E-SK11 Rev P05 and 08551-PJA-SVS-CI-DR-005 Rev P03 to include, but not be limited to:
 - a. Signalisation of the junction of Forest Hall Road with B1383 Stansted Road including carriageway repair/resurfacing as required by the highway authority, and consideration of an intelligent traffic control system (e.g. MOVA) as required by the highway authority
 - b. Signalisation to include one controlled pedestrian crossing point on Forest Hall Road and one controlled pedestrian crossing point on B1383 Stansted Road
 - c. All controlled pedestrian crossing points to be served by a footway of minimum width 2 metres
 - d. Continuous provision of a 2 metre footway along Forest Hall Road eastwards from the main site access to tie into existing provision
 - e. Dropped kerbs and tactile paving at the entrance to Forest Hall School car park
 - f. North-south crossing point of Forest Hall Road in the vicinity of the junction with Parsonage Road
 - g. Active travel route between the site and Peachey Walk/bridleway 53 (Stansted Mountfitchet 45)
 - h. Lining, signing and traffic regulation order for the prohibition of parking on Forest Hall Road in the vicinity of the site access and the Forest Hall School access

Prior to occupation of the development, the approved highway works to be implemented entirely at the developer's expense.

Reason: to make adequate provision within the highway for vehicular and pedestrian access in the interests of highway safety, reducing the need to travel by car and promoting sustainable development and transport in accordance with policies DM1 and DM9 of the Highway Authority's Development Management Policies

Prior to commencement

3. **Construction Management Plan:** no development shall take place, including any ground works or demolition, until a Construction Management Plan has been submitted to, and

approved in writing by, the local planning authority, in consultation with the local highway authority. The approved plan shall be adhered to throughout the construction period. The Plan shall provide for:

- a. construction vehicle access,
- b. the parking of vehicles of site operatives and visitors,
- c. loading and unloading of plant and materials,
- d. storage of plant and materials used in constructing the development,
- e. wheel and underbody washing facilities,
- f. routing strategy for construction vehicles,
- g. protection of public rights of way within and adjacent to the site,
- h. before and after condition survey to identify defects to highway in the vicinity of the access to the site and where necessary ensure repairs are undertaken at the developer expense where caused by developer.

Reason: in the interests of highway safety and efficiency in accordance with policies DM1 and DM20 of the Highway Authority's Development Management Policies as adopted as County Council Supplementary Guidance

Prior to occupation

4. **Vehicular access:** prior to occupation of the development, the provision of an access formed at right angles to Forest Hall Road, as shown in principle on drawing no. 08551-CI-E-SK11 Rev P05 to include but not limited to: minimum 6 metre carriageway width with appropriate radii to accommodate the swept path of vehicles regularly using the site access; 1 x 2 metre wide footways; clear to ground visibility splays with dimensions of 2.4 metres by 43 metres to both the east and west, as measured from and along the nearside edge of the carriageway. Such vehicular visibility splays shall be provided before the road junction is first used by vehicular traffic and retained free of any obstruction at all times.

Reason: to ensure that vehicles can enter and leave the highway in a controlled manner in forward gear with adequate inter-visibility between vehicles using the access and those in the existing public highway in the interest of highway safety in accordance with policy DM1 of the Development Management Policies as adopted as County Council Supplementary Guidance

Compliance

5. **Class Uses:** the development hereby permitted shall include uses within Class E of the Town and Country Planning (Use Classes) Order 1987 (as amended) only within the following maximum gross internal floorspace limits:
 - a. Retail (Class E(a)): no more than 300 sqm
 - b. Café / food and drink (Class E(b)): no more than 200 sqm
 - c. Office (Class E(g)(i)): no more than 500 sqm
 - d. Nursery / crèche (Class E(f)): no more than 300 sqm
 - e. Gym / indoor recreation (Class E(d)): no more than 700 sqm

The precise quantum, distribution, and layout of these uses shall be submitted to and approved in writing by the Local Planning Authority as part of the Reserved Matters application(s). The development shall thereafter be carried out in accordance with the approved details. The total combined Class E floorspace shall not exceed 2000 sqm. No individual unit shall exceed the relevant maximum floorspace specified above unless otherwise agreed in writing by the Local Planning Authority.

Reason: to ensure that the development's impact of the surrounding highway network is acceptable and can be appropriately mitigated by the proposed highway works in accordance with policy DM17 of the Highway Authority's Development Management Policies, adopted as County Council Supplementary Guidance

S106 obligations

6. **Bus infrastructure:** prior to occupation of the development, the provision of the following bus infrastructure entirely at the developer's expense:
 - a. Improvements at the bus stop known as School (o/s) on Church Road, to include:
 - i. New Essex standard shelter
 - ii. 1no. 28" in-shelter real-time passenger information display
 - b. Improvements at the bus stop known as School (opp) on Church Road, to include:
 - i. Raised kerbs
 - ii. Flag and timetable pole

Furthermore, prior to occupation of the development, payment of commuted sums to cover maintenance of the above infrastructure: £8,700.23 (index linked from the date of this recommendation) for the bus shelter and £10,845.09 (index linked from the date of this recommendation) for the real-time passenger information display

Reason: in the interests of reducing the need to travel by car and promoting sustainable development and transport in accordance with policy DM9 of the Development Management Policies as adopted as County Council Supplementary Guidance

7. **Sustainable Transport contribution:** prior to occupation of the development, payment of a financial contribution of £860,000 (index linked from the date of this recommendation) shall be paid to fund improvements to enhance bus services improving the frequency, quality and/or geographical cover of existing and/or proposed bus routes that serve the site.

Reason: to improve the accessibility of the development by bus and in the interests of reducing the need to travel by car and promoting sustainable development and transport in accordance with policies DM9 and DM10 of the Development Management Policies as adopted as County Council Supplementary Guidance

8. **A120/B1383 Stansted Road roundabout improvements:** prior to occupation of the development, payment of a financial contribution of £300,000 (index linked to the date of this recommendation) towards roundabout capacity improvements works at the junction of the B1383 with the A120, to be pooled with other developer contributions

Reason: in the interests of mitigating the impact of the development on the highway network in accordance with policy DM17 of the Development Management Policies as adopted as County Council Supplementary Guidance

9. **Residential Travel Plan:** prior to first occupation of the proposed residential development, the Developer shall submit a residential travel plan (incorporating the principles set out in submitted Travel Plan) to the Local Planning Authority for approval in consultation with the highway authority. Such approved travel plan shall then be actively implemented for a minimum period from first occupation of the development until 1 year after final occupation. It shall be accompanied by an annual monitoring fee of £1,817 to be paid to Essex County Council.

Reason: to encourage trips associated with the development to be made by more sustainable modes of transport such as public transport, cycling and walking, in accordance with policy DM10 of the Highway Authority's Development Management Policies as adopted as County Council Supplementary Guidance

10. **Workplace Travel Plan:** to first occupation of the proposed commercial development, the Developer shall submit a workplace travel plan to the Local Planning Authority for approval in consultation with Essex County Council. Such approved travel plan shall be actively implemented for a minimum period of 5 years. It shall be accompanied by a monitoring fee of £7,269 (index linked from the date of this recommendation) to be paid before occupation to cover the 5 year period.

Reason: in the interests of reducing the need to travel by car and promoting sustainable development and transport in accordance with policies DM9 and DM10 of the Highway Authority's Development Management Policies as adopted as County Council Supplementary Guidance.

11. **Travel packs:** prior to occupation of the development, the Developer shall be responsible for the provision and implementation of a Residential Travel Information Pack per dwelling, for sustainable transport, approved by Essex County Council (to include six one day travel vouchers for use with the relevant local public transport operator)

Reason: in the interests of reducing the need to travel by car and promoting sustainable development and transport in accordance with policies DM9 and DM10 of the Highway Authority's Development Management Policies, adopted as County Council Supplementary Guidance

The above conditions are required to ensure that the development accords with the National Planning Policy Framework (2024) and the Highway Authority's Development Management Policies as adopted as County Council Supplementary Guidance.

Informatives:

- (i) All housing developments in Essex which would result in the creation of a new street (more than five dwelling units communally served by a single all-purpose access) will be subject to The Advance Payments Code, Highways Act, 1980. The Developer will be served with an appropriate Notice within 6 weeks of building regulations approval being granted and prior to the commencement of any development must provide guaranteed deposits which will ensure that the new street is constructed in accordance with acceptable specification sufficient to ensure future maintenance as a public highway.
- (ii) All work within, or affecting, the highway shall be laid out and constructed by prior arrangement with, and to the requirements and satisfaction of, the Highway Authority (Essex County Council), with all details being agreed before the commencement of any highway works. Failure to secure the necessary approvals and relevant permits for works within the highway may result in enforcement action by the Highway Authority against, but not limited to, the owner of the land or the person causing, or responsible for, the damage to the Highway. To start the process to obtain the relevant permissions the applicant should contact the Essex Highways Development Management Team by email at development.management@essexhighways.org
- (iii) Prior to any works taking place in public highway or areas to become public highway, the developer shall enter into an appropriate legal agreement to regulate the construction of the highway works. The Highway Authority cannot accept any liability for costs associated with a developer's improvement. This includes design checks, safety audits, site supervision, commuted sums for maintenance and any potential claims under Part 1 and Part 2 of the Land Compensation Act 1973. To protect the Highway Authority against such compensation claims, a cash deposit or bond may be required.
- (iv) Under Section 148 of the Highways Act 1980 it is an offence to deposit mud, detritus etc. on the highway. In addition under Section 161 any person, depositing anything on a highway which results in a user of the highway being injured or endangered is guilty of an offence. Therefore the applicant must ensure that no mud or detritus is taken onto the highway, such measures include provision of wheel cleaning facilities and sweeping/cleaning of the highway
- (v) There shall be no discharge of surface water onto the Highway.
- (vi) Prior to commencement of the development, the areas within the curtilage of the site for the purpose of loading / unloading / reception and storage of building materials and manoeuvring of all vehicles, including construction traffic shall be provided clear of the

highway

- (vii) The Public Right of Way network is protected by the Highways Act 1980. Any unauthorised interference with any route noted on the Definitive Map of PROW is considered to be a breach of this legislation. The public's rights and ease of passage over public bridleway 27 (Stansted Mountfitchet 45) shall be maintained free and unobstructed at all times to ensure the continued safe passage of the public on the definitive right of way.

The grant of planning permission does not automatically allow development to commence. In the event of works affecting the highway, none shall be permitted to commence until such time as they have been fully agreed with this Authority. In the interests of highway user safety this may involve the applicant requesting a temporary closure of the definitive route using powers included in the aforementioned Act. All costs associated with this shall be borne by the applicant and any damage caused to the route shall be rectified by the applicant within the timescale of the closure.